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Loudoun County Board of Supervisors, FY 2027 Budget Work Session, Thursday, March 5, 2026

Date Thursday, March 5, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 4h 9m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8134>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8134>

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[00:07:06] Good afternoon supervisors, good afternoon staff, good afternoon Loudon. I'd like to call to order March 5, 2026 Loudon County Board Supervisors Budget Work Session. Board members, I'd like to stress the importance of this budget work session as the time for us to offer changes, additions and deletions to the budget.

[00:07:25] If you board members should try to offer all your desired amendments and ask any questions you have during the work sessions, please only offer motions that you intend to support so that we can be efficient with our limited time during the session. In addition, if you'd like to offer any motions on items that do not appear in the proposed budget, please work with staff prior to the work session to ensure your motion is accurate and accomplishes your intended result.

[00:07:52] When we get to our final vote on April 7, staff will not be able to make large changes to the budget during the meeting, and the vote on the budget could be delayed if there are substantive changes that were not discussed and voted upon during the work session. Board members, I often brag about how well this board gets along and how well we do.

[00:08:16] I'd like you to get along a little less tonight and not talk so much on the dais. So I -- did everyone see -- did you all see that? So just a little less getting along tonight would be really, really helpful.

[00:08:34] Thank you very much. I also want to say that I really want to thank both the Clerk of the Court and Steve Torpy and Parks and Rec. If you remember our original schedule for the night, we had family services on the schedule for the night.

[00:08:51] But I actually want to do a little, I need to have a discussion with staff. And so I asked Mr. Hemstreet to move Family Services to the 12th, and in doing so, Parks and Rec and Circuit Court filled in that time.

[00:09:06] And so they're kind of, they came earlier than they had planned to, and I really, really appreciate that you all did that for me. Thank you very, very, very much. Before we start, could everybody please join me in the Pledge of Allegiance? I pledge allegiance to the flag of the United States of America, and to the republic for which it stands one nation under god indivisible with liberty and justice for all mr letourneau should be here soon he's probably battling traffic so the first thing we would do is we would go

[00:09:43] to the county staff for the any budget update you'd like to give us oh there he is yes good evening board members i'm mike franks the assistant operating budget director in omb miss bork can't be here tonight so i'll provide the update staff provided the board a packet last night that included responses to most the county budget questions received by March 2nd and staff will provide an additional packet in advance to the meeting on March 9th. The packet included information regarding permanent supportive housing and funding for shelter house as a follow-up to comments received at the February 26th public hearing. It also included a letter from the

[00:10:19] Executive Director of the Virginia Indigenous Defense Commission regarding the Loudoun Public Defender's request for funding. Finally it included an updated Tote Board memo summarizing that no actions were taken by the board last meeting. This concludes budgets updates and I'm happy to take any questions. Thank you so much. Questions for staff. My only question is, Mike, some of the questions that are for March 9th had not yet been answered so you're doing an updated package before the March 9th meeting just in case we have more answers coming in before that meeting,

[00:10:56] correct? Correct. There's an additional package going out tomorrow. Okay, all All right. Okay. Yeah. And if anything comes in that day, we'll have like a supplement. Yeah, absolutely. Sounds good. Sounds good. Wonderful. Thank you. Anything else? If not, we're going to go on to our first department today. Mr. Clemens, again, thank you. I appreciate you. The circuit of the court is on page 52 and 53. We are ready when you are, sir. We're going to get you out of here first.

[00:11:26] Well, good evening, Chair Randall, ladies and gentlemen of the board. It's a pleasure to be here. I have some quick trivia to share with you. This is a milestone budget meeting for me. This is my 30th budget preparation and presentation for this body. So I can't believe 30 years has gone by, but it does go by fast. It helps when your term is eight years.

[00:11:49] Well, I actually worked on the budget with the commons attorney when I was employed there before I was clerk, that's why it's 30 years. Gotcha. Before I begin discussing my budget, I want to thank several people because this is a year-long process.

[00:12:05] There are several people behind the scenes who support my effort to prepare the budget, analyze our budget, and then present it to this esteemed board. I want to thank Laura Boudreaux, who's my chief deputy for internal operations. Emily Hayes, to my right, who's our budget liaison from the budget office.

[00:12:23] Megan, of course, who was instrumental as our budget manager and a delight to work with. George Govan is someone I've worked with the past year. He's a real joy as well and delighted to work with him. But, of course, someone I really have enjoyed working with during his tenure here is Mr. Hemstreet.

[00:12:40] This group of people are instrumental and very helpful, and the reason I presented this to you is because all these people behind the scenes support my efforts. I want to thank them for that. Thank you, and we miss Emily, actually. Before I talk about the first resource request, I think it's important for the board to know when you invest in my office, there are benefits that come from that.

[00:13:00] I'll give you a few examples. In the past few years, we've been able to expand our notification system for Loudoun residents who are trying to make sure they're not victims of title fraud. We've increased our number of subscribers and our notification service called Loudoun Alert Me by 43%.

[00:13:17] So we have a number of Loudoun residents who are participating in this process, which gives them assurance that if they get an alert, they probably have something that they've bought or sold and have gone to settlement, and that transaction has been recorded with the clerk. If they get an alert and have not gone through the steps, that's a trigger to dig deeper and find out what has happened.

[00:13:38] So we're glad this service has expanded to more Loudoun residents. We've expanded our remote services generally. We've had 93% of our deed recordings happen electronically, which is the highest number ever. We will never reach 100% because a number of our local attorneys and settlement agents who do business in downtown Leesburg like to walk over to the clerk's office and see people.

[00:14:02] So we'll never get 100%, but getting it 93% means that's fewer vehicles on the road coming to the courthouse. We offer now an occasional remote access system to our deeds and land records. Previously, people would have an annual subscription. These are typically professionals who do title research regularly.

[00:14:21] But they're allowed in residence who only want to look up a transaction occasionally. So we now have this occasional remote access service where they can review data. And if they see something they want, they can download it or print it off. It's like the insurance company ad on TV. You only pay for what you need.

[00:14:38] Digital marriage licenses. The clerk is required to keep all court and clerk records permanently, indefinitely. We have a lot of marriage license documents that go back to the beginning of Loudoun County. The paper records take up a lot of space. We've digitized the older historic marriage licenses, which improves public access, but more importantly, reduces the footprint in the court's complex to retain these documents.

[00:15:03] So I just want to share a few examples of how we are using the resources this board appropriates for my office. I will now get into resource request number one, which is on page 52. This is an administrative manager position. A few years ago, I had an administrative assistant in the office who retired.

[00:15:21] We examined how we were doing business. I pursued a reclassification of that vacant position. The human resource team was very helpful in that regard. That position is now involved with project and program management in the office, which is a tremendous asset to my management team.

[00:15:37] We decided that instead of pursuing a regular permanent position as administrative support role to see if we could get by with a part-time position. So for the past few years, we've had a two-year temporary position that's part-time that's been helping with human resource, facility management, other administrative support functions.

[00:15:58] After two years, we have determined that it's not sustainable to have a part-time position, hence the request in this budget for a permanent, regular administrative manager position. What will this position do? There will be administrative management of human resource programs and services to include consultation with employees.

[00:16:16] Erin Moore, your human resource director, gave a great presentation last week. She talked about reinforcing her team to make sure employees have these resources. This board and the county institution recognizes that the most important asset we have in county government are the employees.

[00:16:33] So that's the same philosophy I have for my employees. want to make sure they have access to information and resource to make them productive and happy employees. This employee in this position will empower employees with information and resources, support employees, and offer guidance on family medical leave, short-term disability, other personnel matters. This position will be the payroll coordinator for my office and work closely with the human resource department on payroll matters. This position is involved with recruitment, from putting information into the human resource portal for job advertising, the whole recruitment process that follows such as the

[00:17:11] applications, getting them to the recruitment team, the interview panel, helping coordinate interviews, doing reference background checks, everything involved the recruitment including onboarding of the new employee. Most importantly this board has a policy of veterans preference. We're enforcing that.

[00:17:28] This position will be a critical element ensuring that every veteran gets due consideration for openings in the clerk's office. And then finally this position will support our EAC representative to work with the more global EAC in the county. Administrative support for executive leadership team scheduling meetings with internal management players, scheduling meetings with county stakeholder agencies, other jurisdictions, other clerk's offices, federal and state representatives, residents who want to meet with our leadership team to have issues resolved or issues discussed, and then scheduling numerous oaths of

[00:18:05] office. A lot of people want to be sworn in for a variety of roles. This position will coordinate the scheduling of those transactions. Facilities management is a big issue in our office. The clerk's office resides in the original, well not the original, the original county government center was in 1758, but a more recent county government center before this building was constructed is where my office is located. That building dates back to the mid to late 1970s. It's approaching 50 years of age. Older buildings take a lot of tenderly care and maintenance. This position is essential to facilitate

[00:18:43] facility issues and management of those issues with the General Services Agency. We've had 166 days in fiscal year 2025 when an employee or some of the building had an issue that required resolution, this position will be instrumental in managing all those facility issues. Most importantly, in terms of facility management, this position will be instrumental in coordinating every team member in my office to work with the Capital Improvements Program as they're pursuing a renovation project in my office, as well as other stakeholder agencies in the office. So it's going to be important to have someone to help coordinate over the next

[00:19:22] three years, all the discussions, all the planning, all the relocations that will occur as part of this renovation project. I'm happy to pause to answer any questions about this resource request. Otherwise, I'm happy to jump into my second resource. How about you going to do the second one? Okay. The second one is not included in Mr. Hemstreet's proposed budget, but I'm grateful to him and Megan for including as a reference for this board to consider. This resource request would be allocated to my civil division. This would be a civil legal records clerk on page 53

[00:19:57] of your document. There are several reasons or rationales for requesting this position, but I will limit it to six elements. First of all, we're making expungement preparations for July 1st. There's new laws that will take effect that will allow Loudoun residents to seek an expungement of their criminal charges and their criminal cases in Loudoun County. The second reason is we're seeing a surge of concealed handgun income permit applications. Third, there's legislation pending dealing with marriage celebrants that will impact my office. Number

[00:20:32] four, general civil caseload trends indicate that we need to address those trends with additional resources. Number five, we have people who like to litigate cases, and I'll get into more of that in just a minute. And six, we have presumably a new judge coming online, assuming there's no shenanigans in the general assembly a new judge for the 20th judicial circuit in the next fiscal year let me touch on expungements expungement petitioner something that occur now but not at a high level however we have seen a 37 percent increase in the number of expungement petition

[00:21:08] filings with our office i believe this number will increase because starting July 1 individuals will be aware of a new law that allows them to pursue an expungement of their cases there are certain types of cases that will be eligible for automatic expungement and sealing from public inspection, but there are a number that aren't automatic, and that's where people are going to have to file a petition with the clerk to have the court entertain that request to have their case expunged.

[00:21:36] Concealed handgun permits. We have seen a 31 percent increase in the number of applications for permits since fiscal year 2024. I think that will continue in the future. Marriage celebrants. Currently, per statute, Loudoun residents can petition the circuit court to be requested to be authorized by the court to officiate the rights of matrimony for a civil wedding ceremony.

[00:22:01] There's a large number of these requests. Loudoun County has an appealing array of wineries and other outdoor locations for weddings. And a lot of people who get married to Loudoun County want their friend or relative to officiate the wedding. And by statute, their friend or relative can qualify before the circuit court to be authorized to officiate one wedding ceremony.

[00:22:22] There's legislation pending now that will transfer that responsibility from the court to the clerk. My contacts in Richmond tell me that they think it will pass in law and will take effect July 1. In all fairness to Mr. Hemstreet, this was not on my radar in December when I met with him to present my request for my office.

[00:22:43] It's subsequently been brought to my attention. If this does pass, we currently have an average of 192 cases involved. The authorization of people to be civil celebrants to officiate weddings. Once this law passes, all those cases will not be circuit court cases handled by our judges.

[00:23:00] They'll be cases handled by yours truly. Another reason that I've requested your consideration is just the general caseload trends for our civil transactions. overall there's a 28 percent increase in our

civil caseload since fiscal year 2024. I think that will continue. People love to litigate for some reason. I don't know why. Caleb, it's Caleb's fault. 29 percent, he does mostly district court, so he's not responsible for his docket.

[00:23:35] 29 percent, we've seen a 29 percent increase in number of on-site visitors who are litigating civil cases since 2024. Most of these are self-represented litigants who require more time and more resources than people like Mr. Kirshner, who knows what he's doing.

[00:23:56] My staff spends a lot of time trying to help people navigate the system. We cannot give legal advice, and that makes it very challenging to try to help people when they think you can tell them exactly how to proceed in their case, but we do provide a lot of time and resources to these individuals. We've seen a 91% increase in the volume of correspondence that requires my staff to respond. A third of that are these self-represented litigants. We oftentimes have to communicate that the judge rejected your court order, the judge rejected your transaction, and then what they want, they want us to explain how that happened. In many cases,

[00:24:35] they contact yours truly and say, would you go tell the judge? They need to change his mind on that transaction. Of course, that does not happen, but there's a lot of time invested with these self-represented litigants and I think that trend is going to continue despite our best efforts to encourage them to at least consult an attorney they believe they can handle their case on their own and then finally if all goes well in the remaining days of this General Assembly session we will have a new judge finally for the 20th Judicial Circuit a new judge will certainly help with the conclusion of all civil cases some cases take a long time to adjudicate because

[00:25:12] the docket is pretty full for the judges especially when their attention has to be to due process and constitutional rights of a criminal defendant so hopefully the new judge we can adjudicate civil cases faster but another judge means more work for the clerk in my civil division at the same time so that's a quick summary of my request I'll be happy and delighted to answer any questions you may have with me at this time um thank you very much advisors if you need two rounds you can do that but I think there may be a lot of questions under there. So if you have questions I only see one light and that's Mr. Turner. I'm about to go to have Mr. Kirster. I couldn't pass up this

[00:25:50] opportunity to repeat what the clerk of court said that Mr. Kirster knows what he's doing. May that be made part of the record. Thank you for being here. Thank you for all the work that that your team does, and thank you for presenting your budget request to us.

[00:26:11] Just a couple of quick questions. I have no problem supporting priority one, and I think the alternative is probably one that I would support. I'm not personally going to make the motion tonight, but when we get to wrap up or as we get later into the process, and depending on where we are in the overall budget process, I do know -- the one question I had was -- well, I had more than one question, but the main question I have is do we have any estimate as to the number of expungements we think will increase? I mean, have there been, has the state or the Supreme Court or some analysis been done in terms, because I know the expungement process does take a while as it is right now, and with the new statute it's probably going to increase significantly. Has there been

[00:26:50] any analysis done on that? And how will this person tie, how will that alternative priority two tie into that and help? And then secondly, obviously adding a new judge is going to require additional

resources, how will this alternative tie in to assisting with them, and are you going to need more additional clerks in the future since we do have a new judge?

[00:27:14] Will that be a resource coming to us next year? Very good questions. I wish I had the ability to articulate very clearly what a percentage increase I think is associated with the July 1st legislation. I do not, nor does the Supreme Court. I do know that many people are getting educated about how they have this opportunity that maybe they're not aware of now.

[00:27:36] So, basically, I know what we have now in terms of expungements. We are seeing a 37% increase. So, that's without encountering this new workload I anticipate. So, unfortunately, Supervisor Kirshner, I cannot tell you with certainty how much more it will increase, but I do know it's been a 37% increase over the past three fiscal years.

[00:27:56] In terms of the role this position will play, I do have a management-level position that will manage the expungement program. But as you well know as an attorney, expungement is a very sensitive matter. It requires a high level of confidentiality because once the court adjudicates this transaction and it grants the petition, the case essentially does not exist.

[00:28:21] It is expunged. It is sealed. It doesn't exist. And so we need to make sure you've got proper protocols to handle that confidentiality and sensitivity. So this position will help in that regard. We don't want to have many hands involved with these processes just for that confidentiality purpose.

[00:28:37] So this position will probably work with a management position to ensure the expunge is being processed properly and in coordination with the Virginia State Police, but doing so in a very confidential, sensitive manner. In terms of the new judge position, this board has already given me a position for the judge.

[00:28:57] Last fiscal year, you approved a position. I articulated that we had a large volume of visiting judges, retired judges, coming to help our resident judges. So this position is already helping our visiting retired judges. So this position is trained and in place, and we get the new judge and hopefully reduce the use of visiting judges.

[00:29:17] This deputy clerk, who's already on board, will be plugged in the courtroom to help that judge. Great, thank you. Mr. Turner. Thank you, Madam Chair. Just real quick as an aside, a 30% increase in concealed handgun permits in the last two years is pretty disturbing to me.

[00:29:34] Do we have any indication as to what mechanism is causing that? I do not. The application does require the applicant to explain why they're seeking it. It's just their statutory right. It could be a factor of the population. It could be that people are moving to Loudoun that have come from other states.

[00:29:53] where they have a permit and they want a Virginia permit. So it's a very good question, Supervisor Turner, and I don't have an answer. I could probably unofficially ask people, but obviously it would be required to disclose it. I just said sometimes when you're at the receiving end of that process, you can kind of get a sense there's something going on.

[00:30:12] Right. That's all I was looking for. I mean, I will tell you this. It's not an official report, nor have I collected this data, but I've had people just tell me that they know it's their right, option the law to get it and they get it. So that could be a factor as well. But I really don't know what's driving the surge, quite frankly.

[00:30:29] Okay. Thank you. So remember to write my questions down because I have four and so you can make sure you get them all. Oh, I thought you, I'm sorry, I thought you were finished. I'm sorry. Subsequent presentations are going to start hearing me say this a lot. I think we're going to free up a fairly substantial amount in this budget process and we're probably all going to come back and we're going to come back to the, the alternative scenarios, the priority one two and three alternate scenarios so i'm trying to get a sense of why didn't you just include this as a priority too was it mr hemstreet that said no we're going to cap you at this or megan that said you're going to cap you at this or it's i got to have the first but i can live

[00:31:08] without the second even though i'd like to have it good question mr hemstreet is very open-minded we have a very good relationship i actually presented for request mr hemstreet and he was very directly said i i can only put one in the budget but i will definitely include your number two so this is my number two and i'm grateful mr hamstreet for including that because that gives me an opportunity to articulate to you why i think it's essential which is all i asked him to do and now the ball is in your court as to what you want to do with my number two okay thank you very much if i may manager yes that's fine you seriously get ready to write because i have a lot of

[00:31:43] questions so get ready to get mr the proposed budget before you was completely mine so i capped him and the way he said it was a lot more gracious than I just said it but I appreciate that but yes thank you Tim has a lot on his plate he's got to balance a lot of interest and I have a lot of respect for him so I'm just grateful he included these two in the budget as long as Mr. Hemstreet's not one of the applicants for concealed handgun I would not be allowed to disclose that Mr. Cartman okay so first you talked about the digital marital license and

[00:32:19] And there is something in Congress right now called the SAVE Act, the Safeguard American Voter Act. And it says that if it passes, if a woman's name is different on her birth certificate than is different on her license right now, which every married woman's is, she has to go back and get a birth certificate.

[00:32:38] What kind of strain will it put in your office for women all over Loudoun, and in fact anyone who's been married in Loudoun all over the country to have to get birth certificates from your office so that they can vote. Because if the Save Act passes, it's not just about showing an ID, it's about the birth certificate name matching your name on your ID. So what kind of strain would that put on your office? That's the first question. The second question is, when you talked about vets getting a, well, you didn't say priority, but something like preference, and I, you know, as a daughter in the military, I love that.

[00:33:15] I hope you remember that, and I want you to remember that in Loudoun, my first term or my second term, we passed the B3 program, the Virginia Values Veterans Program. So we have that program in Loudoun already that gives vets training and preference and whatever they need.

[00:33:35] So make sure that you lean into that because we absolutely want to make sure 10% of our population are vets and we absolutely want to make sure that that if we can retrain them and they can have those jobs we want to do that so that vote that program so don't read don't don't recreate the wheel because we have that already here in Loudoun County thirdly when you say the automatic expungement do they have to do anything at all to do to get that are they just if it if that's the what's on their record it comes up without them even knowing it so So that they have to do it for the automatic, is anything required at all, at all?

[00:34:12] And then fourthly, for the circuit court judge, is it possible that a judge right now that might be sitting in another court, JND court or another court, could be moved into the circuit court position and then somebody, and then a judge, a new judge moves into a JND position?

[00:34:32] Could that be possible or can that be possible? And then lastly, technically, aren't all weddings civil? Because religious weddings are religious by the fact that the couple wants to have that in their marriage.

[00:34:48] But by law, aren't all weddings a civil affair? I mean, so when you say, you know, by the state of Virginia and God, it's really the state of Virginia part, right? So aren't all weddings a civil affair no matter what?

[00:35:05] And so when you say to people who want to have a civil wedding, aren't they all civil weddings? That's my question. Thank you. A lot of good questions. Let me go back to number one. You asked about the birth certificates. The good news, Chair Randall, is the clerk stopped being the custodian of birth certificates many years ago.

[00:35:21] We have historically-oriented birth certificates back in the 1800s, but the division- No, not birth certificates. Wedding certificates. You have to- You mentioned birth certificates, so there's a difference. Okay, but your birth certificate has to match your wedding. They have to produce their wedding license.

[00:35:38] So in theory, if this does happen, individuals could do a one-stop with a state agency. That's the Department of Health Division of Auditor Records because they have a copy of the clerk's marriage license for that individual. They also are the official custodian of the birth certificate.

[00:35:53] So in concept, the Department of Health could be the agency where they could acquire both documents and resolve it. However, we're available to help because we do have the clerk's copy of that marriage certificate. So are we ready to handle that?

[00:36:09] We'll do everything we can to help people. We don't know what the volume of those transactions would be. I would anticipate that if we get inquiries, we're going to direct individuals to— It would be every woman in Loudoun County who wants to vote in marriage. I think we would direct individuals to the Department of Health where they can get both pieces of information.

[00:36:28] But if this does go through, I can assure you that the Virginia Court Clerks Association, which I'm a leader for many years, and the Department of Health will collaborate to see if we can have a streamlined approach to help in this scenario if it does go through. Okay. The second question was automatic expungement.

[00:36:47] Yes, there are certain transactions, criminal cases, criminal charges, that are automatically going to be expunged because the General Assembly has determined in previous sessions that some of the previous criminal laws no longer are criminal violations. So the Supreme Court of Virginia has been tasked with doing the automatic expungement. They have data of all the various clerk's office and circuit courts. They are working on a program now. They have assured all clerks and judges statewide that they're going to fulfill the mandate effective July one and we're relying on the Supreme Court to fulfill this mandate by July one.

[00:37:23] However, I am planning to do my own audit. I already have a team member that is assigned on this project that will go back and look at reports to make sure that whatever the Supreme Court has done,

that it matched up with our records to ensure that that record has been expunged and does not exist. But the Supreme Court is going to do the heavy lifting with respect to the automatic expungement so your other question was does the petitioner have to do anything not with automatic expungement the supreme court has the data they have the statutory obligation so they will

[00:38:01] automatically take care of those that are automatic expungent by statute what i talked about earlier is there'll be some people who don't qualify for automatic expungement they'll be the ones that will present their petition to my office they'll then go up to the circuit court for adjudication Sure. Can a judge be moved to JDR to circuit? Inconceivably, yes. That would be a decision of the General Assembly that does the judicial appointments. So if there is a judicial vacancy in the circuit court, the member of the General Assembly, Courts of Justice, and other committees

[00:38:36] would have the discretion to decide who they wish to appoint. In many cases, they consider the recommendation of the Loudoun County Bar Association. The Bar Association will vet the local attorneys or sitting judges from other courts determine who is their top choices they present their recommendations to the general assembly does the general assembly always comply with that recommendation no they do not sometimes they do but that's how the process works but ultimately the decision as to who takes the circuit court bench is up to the members in the general assembly so in concept someone from the juvenile domestic relations court

[00:39:12] or genderistic court could be appointed to the circuit court bench. Sure, okay. And with the V3 program, too, did you miss that one? I'm sorry, the veterans? Yes. The reason I talk about veterans' preference is because we have a good collaboration with the human resource, and they have stressed numerous times that we need -- all of us need to make sure that we are -- Actually, my question was, do you know we have the V3 program already in Loudoun County, so you don't have to recreate that?

[00:39:42] We're not recreating anything. I think we're just making sure that every veteran is given due consideration. Quite frankly, for the record, we do initial interview with every veteran who has applied. Every veteran. Very good. And I like to think most of the times these veterans realize it's not the kind of job they want, but they've applied probably for other county opportunities.

[00:40:03] What I've done with at least one veteran who didn't have an interest in pursuing an employment position in my office, I reached out to that person to try to provide some career guidance and direct them to good contacts in the county. So that might be over and beyond what we're required to do.

[00:40:20] But I do appreciate our veterans, particularly Loudoun County residents who have served our country. So we are certainly making sure that our veterans are given every opportunity possible. Civil weddings. There are, under Virginia Code, two types of weddings.

[00:40:35] Oh, really? There is a civil wedding and there is a religious wedding. Interesting. So by statute, you have ministers who reside in Loudoun County, who have a congregation in Loudoun County, who by statute can qualify to officiate the rights of matrimony that's a religious ceremony.

[00:40:51] Then you have by statute those who can qualify to do civil ceremonies. So the marriage license document created by the Cum Lafayette of Virginia has a sectional license where you can check whether you're officiating the wedding in a religious context or civil. Most of our marriage licenses involve civil ceremonies, but we do have a large number that are religious.

[00:41:14] So we do have civil ceremonies, but there's also religious ceremonies. Thank you. Thank you. Well, thank you very much. I really appreciate that. Everything. Thank you. Thank you. Thank you, staff. You all do an amazing job, and I'm always very pleased that you all also keep all the historical records in Loudoun County.

[00:41:32] Your second request has popped up to be in for me would be one of my first ones that if we have the funds available at the end of the process, I will make that motion because you did a great job explaining what it was and why. So we appreciate you.

[00:41:50] Supervisors, are there any motions on the dais right now? Seeing none, thank you very much. Thank you for consideration. You have a tough job if you ultimately decide that my number two is not going to make the cut. got a good working place with this gentleman over here and i'm sure we can come up with a solution for the near future but let me just conclude by acknowledging another group of people i have a wonderful team of deputy clerks um i receive accolades but i want to give those accolades to my team everyone who has an organization has to acknowledge the fact that you've got good people work with you and i'm incredibly blessed with the deputy clerks my

[00:42:28] office so thank you for giving me those resources and thank you for your time again thank you we appreciate it all right our next department is um i shouldn't say this but it really is like my favorite department in the county is parks record community service it is it is they are they are parks wrecks and community service is pages 93 through 97. hello mr torpe and everyone perfectly fine to say that. It's my favorite department as well. It's the one department that touches, I mean,

[00:43:05] everybody. Everybody. The whole spectrum of your life is Parks and Recs. We're ready when you are. Thank you. Good evening, Chair Randall and board members. Once again, I'd like to thank you for the opportunity to be with you to talk about the needs of PRCS for the upcoming FY27 budget year. With me at the table this evening, to my far left is Deputy Director Jeremy Payne, as well as Assistant Director Myla Neal, and Division Manager Janet Tape, who oversees our operations and budget, and, of course, our ever-present Emily Hayes, who keeps us straight from the budget office.

[00:43:44] I remain very humbled and proud to be a part of such an exceptional team of public servants who once again led PRCS through a very successful year, a year that saw many accomplishments, such as nearly 6.7 million visitors to our facilities, the opening of the Ashburn Recreation Center, the reopening of Bless Park, to say a few or to share a few of those accomplishments.

[00:44:09] However, I believe the year can best be summarized simply by the fact that PRCS was selected as a finalist in the Gold Medal Award Program, which is a national recognition that highlights excellence in Parks Recreation Management and Parks and Recreation Operations, which is what we strive for each and every day, and it is a testament to the hard work and dedication of the PRCS staff.

[00:44:34] I also would like to thank you, the board, for the support that was given to us last year in the FY26 budget cycle, and I'm pleased to report that nearly all of those enhancements have already been hired and are working to help maintain the service levels that the community has come to expect from PRCS as we continue our goal of making Loudon the community of choice.

[00:44:56] This year we have two categories of enhancements within the County Administrator's proposed budget for PRCS, FTE Authority, and one enhancement request that is associated with the board priority. Under FTE Authority, supporting the board's strategic initiative of focusing on child care, staff was able to

determine that there was the ability to open a CASA location at at Banneker Elementary School, as well as add additional slots at six elementary schools, thus increasing the overall daily capacity of the CASA program by 160.

[00:45:31] This allows the program to grow to over 3,300 children per day being served in that program. Additionally, within our community center division, Lovettsville site, there is a request to replace the existing unclassified instructors that we use for summer camp with camp supervisors and leaders, which will bring that program in alignment with the other camp programs and also allow more children to participate in the summer camp program.

[00:46:02] Both of those requests being offset currently by the fees associated with those programs. And finally, in the proposed budget, we have a request that is associated with one of your board priorities, which is the implementation of the next phase of the county-wide comprehensive arts plan.

[00:46:21] As you are aware, the board approved the comprehensive arts plan last summer, and this enhanced service level request supports implementation of that approved plan, which when implemented, will position Loudoun County as a regional destination for arts and culture through expanded programming, through arts promotion, and access to the arts.

[00:46:44] With these positions, the county would be able to establish a new service level for arts programming, which would be 20% above what is currently occurring in PRCS and library facilities. It increases the contacts between the community and the Loudon-based arts organizations by establishing a service level where 80% of those local arts organizations would be intentionally and actively engaged with the county.

[00:47:14] It also creates a public art policy, as well as works with the art advisory committee to expand their role. I would also like to mention that we also had two additional enhancement requests, our priority one and priority two requests, which can be found in the alternative section of the budget document.

[00:47:34] Priority one includes an internal support request, which includes two IT positions related to the specific IT needs of the department, dealing with public information and marketing, as well as tools that PRCS currently uses for interacting with the public and our customers, as well as activities such as cell phone and computer upgrades for a very large staff that we have, the rec track training, and support for that system that is the backbone of our operations.

[00:48:06] Just a quick indicator of some of the volume that we're talking about was very evident this past Tuesday in one of our many registration days where five minutes before we opened registration, we had over 1,300 people waiting in the queue for registration.

[00:48:26] Once we opened, within 23 minutes, we had processed over 1,000 registrations worth over \$400,000, and that was just in the first 23 minutes. Additionally, a department-wide program coordinator to help us maintain current service levels, focusing on program consistency, data accuracy, and timely communication, all of which leads to all of those people wanting to be in the queue and wanting to participate in our programs.

[00:48:54] Priority two was an operational support request in the center's function that brings two of our centers up to the staffing levels consistent with the other centers. Those current service level requests are based upon the community center staffing model associated with the facility size, the amenities, and the hours of operation, and that is at Lockett's and Douglas Community Center.

[00:49:17] Both have seen increases in populations around there, and Douglas particularly with the renovation that occurred in 2022. These two requests would also assist us in maintaining those service levels that the community has come to expect from PRCS.

[00:49:33] And with that, Madam Chair, I would be happy to answer any questions that you or the board would have for us at this time. Mr. Torpy, thank you, and you always thank your staff, but we want to thank your staff as well, all of your staff. So if you have questions, put your lights on.

[00:49:50] Ms. Brickspin. Thank you, Madam Chair. Thank you for the presentation. I like the new logos a lot. I really love the trails and waterways logo. It's super cool. So I will start there. Your budget page 523, where it talks about Loudon's trails and water.

[00:50:06] This is a CIP question. I see that there is some funding for construction, but there's no funding in specific years. So that's still going on and funded, correct? That is correct. One of the things with the Loudon Trails and Waterways is we try to project out when we're going to be able to build trailheads and things along those lines.

[00:50:31] A lot of it depends on when we're able to gain easements and access for things along those lines. But there is in the CIP funding for acquisition of things like that in the future as well. Okay. It's just not on the chart with the purple and the green, so I was a little confused.

[00:50:49] Do you know how much of the signature project has been completed? You can answer that in a different time frame, but do you know offhand? So there was the signature project is getting ready to go out to bid. Bid. Okay. Okay. Great. And then I also didn't see phase two of Bless Park in the CIP.

[00:51:11] What does that mean? So phase two, if you recall, and that was one of the questions I believe that we sent in and perhaps it didn't make it out yet. But in phase one, if you recall, when we were going through the process of phase one, there was direction given by the board that we needed to wait a period of time after phase one was constructed and then go back and do the studies again before we come forward with the boardwalk so we just opened uh reopened in July 1 so we're in that first year so we'll likely be looking at

[00:51:47] going back and studying uh any potential impacts before bringing phase two in that will be likely this fall or next spring so does that mean it has to go back in the end of the six years uh phase two is not a large project okay great perfect perfect perfect okay um and i am uh happy to support the positions that you're asking for and as some of my colleagues had mentioned i think when it comes to wrap up um if things go the way i suspect they will go that we will

[00:52:23] have pretty much enough in the operating budget to cover almost all of the alternative resource requests so hopefully we'll be able to do that during wrap-up thank you thank you thank you I don't I don't know that I think one of your one of your colleagues alluded to that but I don't think most of your colleagues have said anything like that at all did I say most well you said many of my and I don't I don't think that's I just want to make sure we have

[00:52:53] that clarification. Ms. Umstead. Thank you Madam Chair. On the arts element you mentioned more being able to facilitate greater engagement and I noticed in the write-up you've got a lot of engagement across departments but I assume that one statement you made is in relation to engagement with outside arts groups advocates. Would you envision including in that engagement

[00:53:32] those venues that host art shows in the private sector, that organize art shows in the private sector? What kind of engagement do you envision for those groups? So one of the things that we heard as a part of the development of the arts plan was there currently is a lot of art activity going on in the county, both performing arts, visual arts, but there is not a single place

[00:54:08] where folks can go to find out what's going on in Loudoun. And so part of the role of one of those positions is that engaging with those arts organizations and then putting that into a place where folks could easily say I want to go and see a performing arts event tonight and you go to that and here's all of your options which you don't have that now you have to go to each individual one to find out and many times they just don't know okay thank you

[00:54:42] Thank you, Chair Randall, and thank you, Mr. Torpy. I agree with Chair Randall. I really love your department. I love what you guys do. So, building on what Supervisor Umstead said, I like that you're going to have more engagement.

[00:55:01] Do you see engagement in the literary arts, too? Because I'm judging a bunch of youth poet poems coming up, and there's a lot of interest for poetry and having a youth poet laureate. So, I'm just wondering if we could expand it out to literary, even culinary arts you know the yes supervisor to currently we are looking at expanding the definition of that through the art advisory committee or board appointees so that was the hardest question in their retreat last week is to define what they believe art is and there was a

[00:55:37] lot of discussion about that but literary arts and expanding past just visual art and performing art is is well in their scope for their own group but also in the arts plan one of the public input things that was very clear to us as they wanted it to always say arts when possible to be more inclusive of all different types of arts to include spoken word literary wonderful graphic art yeah we have a lot of talent in loud we do so yeah um thank you for that and then um we met with our um akoi rep recently and um i was wondering if um you are offering reduced or

[00:56:13] free admission to rec centers for some low-income families or even youth? Are we offering that? I think we've talked about that. So we have talked about that, and one of the things, if you recall some of the discussion earlier this year that was associated with the PRCS CARES program, we're in the process of going and doing a comprehensive fee study and looking at all of those types of things so that we can bring that back as a part of the FY28 budget process.

[00:56:49] So that's where we would look at that. Okay, wonderful. Thank you very much. Thank you, Mr. Letourneau. Thank you. So jumping over to CASA, I wonder if there isn't still some efficiency that we can look at here. So when you look at the list where there's capacity and where there's enrollment, there's a couple schools that are literally less than 25 percent enrolled. The very first one on the list, which is Aldi has 10 with a 40 capacity. And then I think Sugarland has 13 students enrolled with a 40 capacity. But then on the flip side of things, Henrietta

[00:57:26] Lox has a wait list of 34 and Hovetter has 23 open slots and they're literally next door to each other. Like the two schools were built adjacent to each other. So I understand that the ages of those two schools were different, but it seems like we ought to be able to do something in some of these cases on one end or the other where we could either consolidate because there's very little enrollment, or in places that there are wait lists, could we essentially sort of shift, especially in that case. Yeah, and we certainly can go

back and look at those two schools. Those two schools are very unique in that they are, they share a parking lot.

[00:58:04] Yeah. The challenge that you have with some of those other schools and consolidation is the transportation piece of it and getting the schools or getting the kids from one particular school where we may not offer the program over to another school.

[00:58:23] It's just not feasible to get that and keep it within the cost ratio. Well, that's the question. I mean, is it more expensive to move somebody versus keeping a site open and the amount of staffing that goes into that? I don't know the answer to that but I think it's something that would be worth exploring at least.

[00:58:43] But yeah, at least in that one instance you don't need any transportation. They're next door to each other. So I'm just trying to think about what we can do to drive the waitlist down for the most part. Okay, additional question. I know my colleagues keep alluding to having money at the end. I don't know if there will be or there won't be. I'm concerned about the fact that ultimately you aren't actually getting any of your departmental priorities because everything is going to the the arts program. There's 854,000 here going to the arts program, but you have these alternate scenarios. The internal operations one seems fairly necessary at 439,000. It's not funded. So

[00:59:22] I would make a motion. I doubt it would go anywhere. But what I don't know, though, is the breakdown in the arts program, like the line by line of that 854, because there's three the FTEs there, then there's a grants program, and then there's the artists in residency.

[00:59:41] So could you get me that if that ends up being needed to try to ensure, because I would like to make sure that you get the internal operational support that your department has asked for, at least that. We can definitely get that breakdown. Thank you.

[00:59:57] I would align myself -- well, your first -- I'm sorry, make sure. first budget request actually is a, is a, your first request is, it's a CASA, but yeah, but it's still, it's still the funding for it. By the way, you know, I say this every year, I'm going to say it again this year too, my kids attended CASA and YAS in every summer program in CASA and YAS from the time they entered first grade all the way through middle school and then in high school they were both referees for the basketball programs

[01:00:31] that Casa and Yas, with the Parks and Rec's help. So I am, my kids were raised on Loudoun County Parks and Rec and I cannot appreciate you all more. You do phenomenal work. So thank you. I do hear what Mr. Letourneau was saying and I would like to have that information too.

[01:00:49] We will see, that's what a wrap up is for, to see what we have and what we have left and where we're going to land. But that information would be really helpful. Mr. Torpy, I do believe that your department probably has more of the citizen boards than any other department. You have the pros board, you have the Area Agency on Aging, you have a couple of other citizen boards that sits under Parks and Rec. Advisory Commission on Youth and Art Advisory Committee. Art Advisory, so all those sit under Parks and Rec. Correct. If some of those individual citizen boards would like to, are interested in having more

[01:01:26] resources to work with what I've said to them is that usually that happens through your budget request and often will happen through personnel in your budget request is that correct or is there any time where you give any of those citizen advisory boards any resources any other way than through the overall

budget request and the citizen and the personnel in those budget requests. What I would say is that overwhelmingly it goes through that budget process. I mean,

[01:02:03] obviously, if it's something that we can very easily absorb within the budget and it's something that, you know, is within our purview, wouldn't come through the budget process. But a perfect example of that would be about 10, 12 years ago when the pros board, they wanted to take on renovating school fields, and we worked through that process with them, but then during the budget process, we came back to the board with a recommendation for staff and equipment to do that. Okay. Very recently, Advisory Commission on Youth with their mini-grant program, that was

[01:02:43] something that they came forward and recommended, and in a subsequent budget year, you all funded that through a base budget increase. So that is the process that we typically do. One thing that we like to do is our PRCS or AAA liaisons with those groups, usually at the beginning of the year, we will have a conversation with those committees about what is it that you all want to focus on this year.

[01:03:15] And we recently had that with the pros board. I know Ms. Neal was talking about just recently the retreat that we hosted for the art advisory committee to kind of get those conversations going. And then from that, if there is resources, we would come back and see whether or not we can handle it internally or if it's something that we would need to come back through the budget process, we would do that.

[01:03:39] Okay. How old are your youngest clients? I'm sorry? How old are the youngest people who, the youngest clients that you might have in Parks and Rec? So we have two-year-olds that can be a part of an actual scheduled program, but we have infants that come into our facilities as well.

[01:04:00] But two-year-old is the earliest that we would have actual programming for. So two to Area Agency on Aging, that is your span? Yes, ma'am. The lifetime of a human being? Yes, ma'am. That's why you're my favorite department. You guys do just a phenomenal job.

[01:04:17] please thank your host staff for me. Supervisors, are there any motions on the dais? We may see you back here at wrap-up, and thank you until then. Thank you all very much. Appreciate the support. All right. Health Department. Not too busy.

[01:04:33] They're not too busy lately. Page 79 through 82. Hello, Dr. Goodfriend. How are you? Well, I was doing better, but I always thought we were your favorite department. I know. I'm so sorry. So you may see a tear or two during this presentation. That's why you're not going to get any of the things you request tonight. No, I'm just kidding. My family loves me.

[01:05:05] And you're, yes. The year there when you were everybody's favorite. That is true. I'd rather not be your favorite than to have a pandemic again. So that's all right. Exactly. Exactly. - Good evening, Chair Randall. Good evening, members of the Board of Supervisors.

[01:05:23] I'm here tonight with Harry Walsh, who's our public health operations officer and our wonderful budget liaison, Claire. For tonight, we have five positions total in the county administrator's proposed FY27 budget.

[01:05:39] Three of them are funded positions. Two of them are on the alternative list. All five of those positions are positions focused trying to regain some of the capacity we've lost due to the loss of federal grant funds in those areas. For the three funded positions what they have in common is their focus is

trying to control the rise of communicable diseases in our community in different ways. So the first is the disease investigation specialist. We currently have a state grant funded disease

[01:06:16] investigation specialist that grant funding is going away the state is going to take their position away when the grant funding goes away and that's going to be statewide it's not it has no relationship to the locally administered versus state administered that's a specialized position focused on identifying and getting contacts of people who have sexually transmitted infections in for treatment and care.

[01:06:44] That's important to help keep at a minimum our number of folks in our community with HIV, with syphilis and with other sexually transmitted infections. Right now, the capacity is more than what one FTE can handle.

[01:07:00] So the focus really is in Loudoun County on HIV and syphilis because of the impact on the community. Congenital syphilis is a horrible infection. We don't want that ever in Loudoun County. And similarly, HIV is a lifelong infection.

[01:07:19] And if you don't get the context, you wind up having more in the community. The second is an epidemiologist position. The epidemiologist's role is different. In general, they focus on addressing and preventing outbreaks of diseases as opposed to our communicable disease nurses that focus on individual cases.

[01:07:44] One of the differences and exceptions to that is measles, because there's so many contacts of a measles case, it could be hundreds of contacts of a measles case, and particularly now with what we're seeing, that's a lot of what our epidemiology folks are working on.

[01:08:03] To really, if we get a measles case, to quickly identify all the potential contacts, get them in for care to prevent that secondary case. So measles doesn't take hold in Loudoun County. Now, again, measles may not always be as common as we're seeing it now in the United States, but there's always something that comes next that really becomes that issue.

[01:08:27] When we did have COVID, that's where our epidemiologists were focused. And then the last one is the healthcare preparedness coordinator. One of the things we learned with COVID is a lot of our health care facilities need help.

[01:08:43] And they're the folks, whether it's an acute health care facility or assisted living facility, a nursing facility, where we have our most vulnerable residents. And when folks have a good plan to keep their residents safe, their staff safe, to limit the spread of outbreaks, we see fewer people getting hospitalized and fewer people dying.

[01:09:07] because in a congregate setting, diseases spread very quickly. So that's what this position is focused on. In addition to those three positions, we have two on the alternative list. Those are both community health worker type positions.

[01:09:25] One's a supervisor, one is just a community health worker. Again, one of the things that we learned in COVID is there are a lot of people that are very hard to reach throughout the county. Some of those are immigrants in the east, some of those are in our more rural areas in the west, and it really is key to have not only trusting relationships with these individuals, but to have specially trained folks who can identify when we need to go out to those communities to lower barriers to care.

[01:09:59] Because, again, although their focus is not on communicable disease, it could be on lots of different types of public health issues. When there is a communicable disease, people who are less likely to come into care for whatever reason are the ones more likely to spread the infection.

[01:10:18] But even when it's not a communicable disease, we want everyone in Loudoun County to live as long and as healthy a life as possible. and they play an important role in getting that word out to folks, connecting them with care. And those are our five positions, and I welcome any questions you may have.

[01:10:43] Okay, thank you, thank you. Well, these are heavy-duty positions for very important reasons. Thank you, Dr. Goodfriend. And again, thank your whole staff for doing all that you can to keep us healthy as much as possible.

[01:11:00] Ms. Bricksman. First again, thank you, Madam Chair. I'm going by how fast I see lights come on, that's all. Thank you for your report, and thank you for all of the work that you do. Do you know if there's ever been, on the STI testing and treatment position, do you know if there's been any interest at all in the county from organizations like Whole Women's Health or Planned Parenthood?

[01:11:26] Because 54% of what Planned Parenthood does is STI testing and treatment, and another 24% is just contraception. so do you know if there's been any bites, any interest? We work very closely with those other entities. The way the process is, in Virginia, certain diseases are required to be reported to the health department. That's typically how we find out about it, so if someone's going to one of those entities, it could be HealthWorks, it could be an urgent care center, it could be an entity outside of Loudoun County, but if they're a Loudoun County resident, we get those reports,

[01:12:00] And that's when we follow up both with the health care provider and with the patient who's been diagnosed to identify the contact. So we work very closely. Now, we may not be the ones who treat those contacts. We may refer them to someone else. But typically in Loudoun County, because there's no cost for the large majority of folks who have a sexually transmitted infection, they'll come into the health department.

[01:12:24] But if they have insurance, if they prefer to go to a different provider, they can do that as well. And we'll follow up with them to make sure that occurs. And then if they don't have insurance, really the only option is HealthWorks? Or the health department. Or the health department.

[01:12:40] Yeah, I guess my concern is if there's that kind of a concern, I don't know that most people would think of the health department first, right? They might think of some of the more branded, popular places where they know they can get that treatment. And we would encourage people to go wherever they feel comfortable.

[01:12:57] but no matter where they go, if they're diagnosed with HIV, syphilis, gonorrhea, we'll find out about that, and then we in the health department will follow up with that individual to make sure that they got appropriate treatment and also to identify any contacts they had in order to help those contacts get taken care of as well.

[01:13:17] - I guess, do you think we're capturing all of it because we don't have those types of services? - Definitely, the goal is to identify people quickly as possible because again we encourage folks to be in a monogamous relationship but if they are the likelihood that they would have an STI is less so so every amount of time that goes by is more folks that may have been exposed part of the issue is people may not

know that they have a sexually transmitted infection and that's one of the reasons in general we want to lower

[01:13:53] the bar for people coming in for care and why we're so fortunate now to have a free clinic a community health federally qualified community health center like health works and other opportunities including the health department but the more barriers we have for people accessing care the more likely it is that people are going to be spreading infections in the community thank you happy to support your positions thank you thank you mr crony Thank you, Chair Randall, and thank you, Dr. Goodfriend.

[01:14:24] Last year, you had seven positions. I'm just wondering if you filled all those positions. Yes, we have. Okay. Currently, we have six positions vacant, and that's been through turnover, and all of those are in active recruitment. Okay, and how many do you have total in your department?

[01:14:41] Do you know? People? Yeah. Yeah. We have 134 positions right now, and 128 are filled. Wow, okay. So I saw with the disease intervention specialist that it looked like it was federal.

[01:15:00] The current federal administration has chosen not to continue funding this program. So was it a federal, was it funded by the federal government or the state? So this, currently it's funded by the federal government.

[01:15:15] government it's it's a Virginia Department of Health position and they have positions throughout the state funded through that grant depending on the need and but prior to that federal grant the state had a smaller number of DIS workers that were state funded now that that grant is not being continued what we've been told is the state is not going to go back to funding those positions that the law as far as I know they're all going to go away as that the federal funding

[01:15:51] goes goes away but you're still mandated to track these diseases yeah so probably so what we do is even though we we have that one full-time dis worker that doesn't cover all the stis we have so we also have a communicable disease section of nurses but this is a little different it's not by definition, a nurse. The specialty of this individual is that skill of talking with that case to identify the contacts, because a lot of times this is a very sensitive issue. People may not want

[01:16:29] to identify who all their contacts are and give those contacts information, but also to talk with the contacts to see if we can talk to them about getting treated. So an alternative would be, instead of a dis worker a public health nurse but again the skill set is a little bit different okay and and i'm just from what supervisor brisman says it sounds like you don't even know what the prevalence is because other other groups may be treating this so i see you had 425 but it could be much higher if if other groups are treating them we'll we'll know about them because

[01:17:07] it's reportable what we don't know are the people who never come in for for treatment that you could have, and this happens in lots of areas, people who had syphilis for decades, but never came in for treatment. So for those folks, they don't get counted. But if someone comes to us or someone comes to their private doctor's office, by law, the doctor and the laboratory are required to report that to the health department. Okay. Thank you. Thank you. Ms. Umstead.

[01:17:38] Thank you, Madam Chair. I very much appreciate your pointing out the loss of federal funds. You might be the first director who has mentioned that as having a direct impact on your budget.

[01:17:58] Do you think your department is more heavily impacted by a loss of federal funds than perhaps other arms of county government? I don't know if Claire or others in budget office are aware that they could speak to you.

[01:18:16] Yeah, we actually, in the proposed budget, did star all the resource requests that were tied to federal impacts, and it is primarily health and then DFS as well. Okay. If I were an undocumented immigrant living in this county, and I went for my health care to one of the lower-cost facilities, and there's one that does provide services to a very high percentage of undocumented patients, would I feel safe coming to the health department,

[01:18:56] or would I consider that as tied into a governmental structure that I might not trust? I can't speak for people in general. One of the roles of the community health workers is being out there in the community and establishing that trusting relationship.

[01:19:16] Where we're seeing it most impact us is with contact investigations. Because, again, if a case comes to a doctor, they've seen a doctor somewhere. But they may be very reticent to let the government know about other people who may be undocumented.

[01:19:35] And those other people may be more reticent to pick up the phone when they get a call from us. It's one of the reasons why I know we recently talked to DIT about can we use WhatsApp? Is that an appropriate mechanism for reaching out to folks?

[01:19:52] Because many of our immigrant populations trust that more than getting a text from a government number. And that's a challenge. And that's one of the challenges that we and probably a lot of the human service departments are now struggling through. How do we reduce that fear in the community of coming in for care?

[01:20:13] It also, again, it's a great credit to this board for funding the free clinic and for health works, for which folks may have significantly less of concern going to.

[01:20:29] because again our our goal for a safe community is we want people to come in for care we want a pregnant woman to feel comfortable getting prenatal care we want someone who's sick to feel comfortable getting treatment both for them but for the rest of the community thank you mr sains thank you madam chair good seeing you dr good friend um you mentioned you had some turnover what were some of the reasons for the turnover that you can share uh for a variety of of reasons. I don't know if Harry can speak to it. Some for good news are retirements and we have

[01:21:04] our vacancy rate now of six out of 130 something. It's about a four percent vacancy rate. So overall we don't have much turnover. Do you have Harry reasons for it? I'm just looking at the six positions here. Three of the six were promotions. One within the health department and two to other county departments. One of them was someone who moved out of state and the other two are people who I'm not really sure why they left. They may have gone to other employment. Okay but majority of them sound like good reasons for promotion so you have to backfill those roles because they left

[01:21:40] to go and to stay with us. Yeah and that's been one of the great values of becoming locally administered is as part of that process we got a number of new positions at various level of the career ladder, which has allowed us to retain those really good employees who otherwise would be looking for promotion outside of the county. Well, good. That's good to hear. And then in your presentation, you

mentioned measles. Unfortunately, it's going up. And I know I've heard stories and read some articles and news articles. Syphilis is on the rise as well. Can you, in your expert

[01:22:19] opinion why is those two diseases that over decades were pretty much darn near eradicated why are they starting to pop back up? Yeah when I was going through my residency in Baltimore the focus of syphilis is we were going to eradicate it by the end of the 20th century and we didn't. It's something you know in general sexually transmitted infections continue to pop up because of people's activity. It's really hard to stamp it out, particularly when you're

[01:22:51] dealing with folks who have barriers to receiving care. And so for syphilis, it is one of those things where anytime you take the thumb off that pressure of getting people in contact tracings and treated, you're going to see an increase. Measles is different. It's unfortunately found the pockets of folks who choose not to vaccinate or hesitate in vaccinating.

[01:23:23] One of the issues we've always had in Loudoun County is we're an international community, both those who live in Loudoun County and those who land in Loudoun County. And the big difference is, while we expect measles, which is common throughout the world, to on occasion come through the airport, we don't want it to take hold.

[01:23:45] And that's a continued challenge, because we do have pockets of folks in Loudoun County that choose not to vaccinate according to the childhood schedule. So we always have that risk of taking hold in our community.

[01:24:01] Thank you. Mr. Turner. Thank you, Madam Chair. It's a little tricky, so I want to try and frame it, and it's a follow-up really on Supervisor Sains's question and maybe Supervisor Umsatz. So I get the feeling, like correctly from all the departments, that your budget is based on a simple straight-line extrapolation of the existing environment in which you are operating to say, this is what we need to continue to provide services at the level that we're expected to provide them.

[01:24:33] My point here is that, but it's not a stable environment. We have very responsible or irresponsible officials in very senior positions who are actively discouraging the use of vaccines, both adult and childhood vaccines, and a concomitant increase in measles and communicable diseases.

[01:24:54] So my question is this. If that trend continues, and I think more than in any other department, the removal of federal funds has a direct public health impact. If that impact occurs and continues to increase, where in your budget would it probably impact? So we can kind of anticipate if you have to come back to us for more resources, where in what department are you going to come back for those resources?

[01:25:18] Where we felt it the most is in communicable disease control, and that's why those are our top priorities, you know, and understanding the fiscal constraints of the FY27 budget, that's why we put those as the top three. And also because, as you all pointed to, that's where we took the bulk of the hit of federal grant funding.

[01:25:41] There were a total of 10 FTEs that we lost as a result of the end of that federal grant funding, both between the DIS worker and for the communicable disease positions, and we're only coming forward with three, to help us get a little better towards that.

[01:26:00] All right. Well, then let me follow up with what you just said. You're trying to do it with three. What would be ideal? Replace all 10? Probably not, because some of those 10, some were really just

focused on COVID, and we don't have COVID now.

[01:26:17] So while we could have a pandemic in the future, from a planning standpoint, I wouldn't ask for positions for the what if, should that come. The three was really a bare bones because what we wanted to do was really present what we thought were the top priorities to you.

[01:26:39] Are your alternate requests a reflection of if we have extra money, that's where we wanted to go to plus up the three, I assume? So the community health workers in part support communicable disease, but they're much more broad than that.

[01:26:57] It really is trying to reach our vulnerable and harder to reach populations in general. So, again, part of that is communicable disease. Part of that is the process that you funded as part of our transition, which is to do periodic community health assessments in the community.

[01:27:17] And hard to reach people are hard to reach. And really, we want, if we're going to do a community health assessment, we want to know what the whole community wants and prioritizes, not just the more vocal elements of the community or the ones more likely to fill out a survey.

[01:27:35] Sort of like with the census takers, some people will send in their census form, but others, you've got to go door to door in order to really get a sense of the community. And that's also what these folks would be doing. Great. Thank you. So, just yesterday I was in Ohio because I am on the local government public health commission trying to discuss how we get trust back in public health departments and what happened during COVID and all these types of things and it's one of these commissions where I'm

[01:28:12] just keeping up because one of the participants is Dr. Regina Benjamin who was the Surgeon general under Barack Obama. Another one is Dr. Patrice Harris who was, I think, a former, she was former AMA president just two presidents ago and Governor Kasich from Ohio has called us and former Governor Beshear. So we're having these discussions and it was really an interesting discussion because some of the things that all the doctors were talking about was just what you're saying and in that there what there has been a loss of a loss of

[01:28:49] trust in general in public health and that is very unfortunate because health is a non should be a nonpartisan issue and so we're figuring out how to you know how to get that back my role in there is to talk a lot about to talk some about what what role mental health plays in this discussion you know we talk about increasing HIV numbers, a lot of that is because people are using, and they're using substances, and they're using needles, and they're having unsafe sex, and so all the health goes together, you know, so it's, so to that, I have, I have two questions that

[01:29:25] came up yesterday. One, as far as we know, are there vaccinations right now that are either being no longer available at all or are being discouraged.

[01:29:40] Now, I'm not asking, should we mandate them? I'm asking, are they even available or are they possibly available but being discouraged? So, and then my second question is, there is a discussion that's going on in NACO.

[01:29:58] Marianne Borgesen leads the discussion around health in the senior population. And what the numbers show is that STD in senior populations is rising at a pretty good clip.

[01:30:16] And so it's harder because a lot of seniors, you know, when asked about it, they did not even have sex. And I'm like, what's something going on, right? So are you having access to some of our senior facilities, and if so, are you having those discussions?

[01:30:34] Because we don't want anyone to get syphilis, but if you're already an older person that may be medically compromised, you certainly want to keep those people healthy. And so are you going into the senior living communities, whether they be the Ashby Ponds or the Lansdowne Woods or into any of the senior, what we might call nursing facilities to have the discussion on safer sex?

[01:31:00] Sure. For vaccines, fortunately, even with the changes at the CDC's recommendations, they have not changed the Vaccine for Children program. So in terms of availability, the Vaccine for Children's program is incredibly important in providing free vaccines to children if it's on a required immunization list.

[01:31:24] And they haven't changed the required immunization list. They've changed the wording of it so far. So those vaccines are still there. So children can get those vaccines for free from the health department and from HealthWorks and some other locations.

[01:31:42] but it's predominantly the two of us that participate in the vaccine for children. - What do you mean they changed the wording of it? - So in general, the wording that they're going for many of the vaccines is saying shared decision-making.

[01:31:59] So instead of it being that you should get, and this is hypothetical, but for the MMR vaccine, instead of saying you should get it at these distinct months, at these visits, It is you should have a conversation with your provider and the provider should talk to you and have a shared decision process.

[01:32:20] I think that wording adds confusion to folks and may we may find that more folks choose not to get their kids vaccinated because their doctor may not be recommending it. Their doctor may be saying, well, you know, it's up to you whether you get it or not.

[01:32:40] But because it's still on the schedule, it's still available. It's the confusion that we're hearing more of from folks of saying we used to just trust the CDC. Why aren't we trusting them now?

[01:32:57] In Loudoun County, by and large, we have tremendous pediatricians that are continuing to give those same recommendations. additionally and you may or may not have have seen this um in virginia just made the decision to join the northeast um i did see that uh uh collaborative uh so we're going to be joining those other states with now we're the most southern of those uh following a set of recommendations

[01:33:30] that may or may not differ from what the cdc does and then the last piece of that is for school entry and again we want everyone to be vaccinated on time but for school entry those are mandated in the code of virginia so that doesn't change what potentially changes is you may have more folks choosing to opt out through for religious purposes because there's always a religions opt out for it and we have been seeing more of that particularly from the covet era on where

[01:34:05] more parents have have taken kids into private schools and that becomes an issue as we talked about pockets of folks that don't vaccinate on time some of our private schools have fairly significant percentage of their children their students who are not fully vaccinated and then when you when you have a group of folks together whether it's in a school in a congregation in the community it just increases the

likelihood of disease transmission but in terms of availability right now it's fine there were issues in the news recently where the

[01:34:43] fda was saying we're not even going to look at some new vaccine type but they backtracked on that fortunately for our seniors that health care coordinator position easily may be helpful not Not for the independent living seniors, but for those in assisted living where we're more of a focus.

[01:35:06] Now, the other thing would be because, again, those STIs are reportable, if we found that we were seeing some coming from an Ashby Ponds or some other place. I don't want to pick an Ashby Ponds.

[01:35:21] I just used that as an example. I don't need no emails from Ashby Ponds. You all are good. You're fine. Yeah, I won't go through the others. A senior living community. And we're not allowed to wipe that from the tape, but we'll wipe it from our minds.

[01:35:45] But that's where, again, our communicable disease staff and our disease investigation specialist comes in. Because they would follow up on that case, and if they found that there were contacts in that community, that easily would point to a different type of intervention.

[01:36:02] To my understanding, I'm not aware of that as of yet. I can go back to my staff if they are, but it is an issue and we do hear it come up at times, at least I've heard stories in Florida particularly where they have senior communities where that may be one of the highest rates of STIs.

[01:36:23] - Yeah, yeah, absolutely. I know which was, we had that one discussion. But not at Ashby Ponds. A great place to live. Okay, media, do not put Ashby Ponds. We're going to leave Ashby Ponds alone. As an over 55 person, I may be there any day now.

[01:36:42] We're going to leave them alone, okay? I just don't need that smoke. I really don't. I don't. Dr. Goodfriend, thank you very much. Thank you so much. I'm not going to make any motions right now to add any, although I do understand the need.

[01:37:04] And so what I would do right now is ask my colleagues, are there any motions on the dais? Seeing none, thank you very much and thank all of your employees for keeping all of us as healthy as possible. Thank you. Thank you. So we're going to do the next two and then we'll take a break.

[01:37:19] So we'll do mental health substance abuse and then we'll do building development and then we'll take a break. So can the wonderful Margaret Graham and her staff please come to the table?

[01:37:43] okay okay no no just no good good evening good evening madam chair um i'm here this evening with our budget liaison oh i'm sorry miss graham you are you are pages um 91 and 92. yeah thanks thank you and i'm here this evening with our budget liaison emily vasil my the mhsads deputy director sheryl watson and the senior manager of budget and finance bina chundvalo and i want to thank

[01:38:18] you for this opportunity to discuss the fy27 resource requests for the loudon county department of mental health substance abuse and developmental services otherwise known as mhsads while some may refer to us as just mh i want to emphasize that we are mental health substance abuse and developmental services and mhsads represents the full scope of our work and the professionals behind all of our service areas i also want to acknowledge that mhsads operates with the support of a policy advisory community services excuse me community services board in accordance with the

[01:38:55] code of virginia so the department's priority one resource request found on page 91 supports the current service level in residential services the department is requesting 650 000 to contract the

operations of three existing supervised living homes from county staff to a qualified vendor.

[01:39:18] The existing county staff will be reassigned from supervised living to the county group homes. Group homes require 24-7 staffing at a level appropriate to address the health and safety needs of each resident and the workforce. MHSADS residential support professionals are essential providers of long-term care and treatment to people living with behavioral health and developmental disabilities. Residential support professionals provide care and supervision to some of the most vulnerable adults living with mental illness and developmental and intellectual disabilities.

[01:39:54] The department needs the existing county staff from supervised living to provide residential support professionals a more predictable work schedule to reduce mandatory holdovers and to enable staff to benefit from the scheduled days off and leave accruals that the counter makes available.

[01:40:14] My priority two resource request is on page 92 and request resources to address mental health and developmental service needs of children and families. The department is seeking three full-time positions to maintain current service levels for supervision and caseload size.

[01:40:33] positions will support specialized behavioral health outpatient therapy and case management for children and families. The department is requesting two case managers and one behavioral health team coordinator to improve access to evidence-based practices and to improve transition from school-age services to adult services for children and families. These positions, coupled with minor reorganization of existing services, enable the department to improve the alignment of our services with contemporary industry standards of care.

[01:41:08] That concludes my presentation and I'm happy to answer any questions. Okay, thank you. Thank you very much. Questions for Ms. Graham, if you have questions, please put your light on.

[01:41:23] Mr. Crony. Yeah, thank you, Margaret Graham. Thank you so much. This was very well done, this description. How many group homes does Laban have now? I saw in our CIP we're scheduled to get two replacement homes. in Algonquian and one in Leesburg, but how many do we have now? Currently eight, four are specific for individuals with developmental disabilities and four for individuals with serious mental illness. Okay, and you plan on moving the existing employees that are in, that are doing supervised living to the group homes, correct? Yes. Oh wonderful, okay.

[01:42:01] Do you already have a contractor in mind so that there isn't any? We do have a relationship with one entity that currently does the contracted services. If approved, we would likely put another RFP on the street and see who applies and gets the award. Okay. And what is, can you explain what supervised living is? So supervised living are typically smaller settings where individuals with serious mental illness reside, and the staff are assigned based on

[01:42:33] needs of each individual living there. You are not obligated under the licensure to provide 24/7/365. You have to be able to expand to that based on the symptoms of the individual. So by and large, the folks that reside in supervised living have staff that stop by for a couple of hours, a few days a week, or an hour or two every day. They are, the individuals living in supervised living are more um independent and need less staff support but they can't go without any

[01:43:13] interesting okay thank you very much i appreciate all that you do for the community thank you thank you so um more than once i've i've asked for a a name change in some of the things that we do down

in Vaco because they always have things that say for CSBs and I say not every -- it literally says CSBs and I say not every department in Virginia is named a CSB.

[01:43:37] We'll name them a TATS and this is why. And so I've actually had those -- taken out the word CSB and put a description of what you do instead instead of having the word CSB in there. First -- and you know what I'm going to do next year, I'm going to take you down to Richmond with me to explain to people in Richmond the difference between a group home and a recovery home, because right now in Virginia Cove they are the same thing and they are not the same thing and we have been dealing with this for years and we'd like to help people understand why they are so, so very different.

[01:44:10] So for the supervised living facilities, you have a vendor. Who will be, will there be county staff that oversees that vendor and who would that be? That's my first question. And then for your second priority, for the two case managers, which I'm always happy to say yes to case managers.

[01:44:31] Case managers have such an important and very, very hard job. But my question is, if you have case managers, do they have the services out there? So when they make that phone call for their client, for their services, how do the services in Loudoun County look?

[01:44:51] I mean, because one of the most frustrating things is to be a case manager or do the case manager job. And you're trying very hard to find those services. And there's just, you can't find anybody to do employment for that person who may be a re-entry person or for that person who has those special, whatever those special needs are.

[01:45:11] And you can't find transportation or you can't find, you know, do we have a place in Loudoun? How are we doing in Loudoun County for the services that case managers are calling for? Are those your two questions? Those are two questions. Okay. Thank you. So to answer the first question, I do have a county staff whose background was in all things residential services, who serves as the contract manager for residential services when we have county homes that are contracted out to provide the staffing and the operations 24-7.

[01:45:48] So that person would be supervising that contract? That person would be supervising that contract. Okay. And so I have many different types of case managers, and when I say that, we operate programs and you've supported case managers for the early intervention programs, 0 to 3.

[01:46:10] This particular request for case managers is to specialize in families with children and the liaisons to the various services to support the families with children. What I know to be true amongst the case managers is that for the population with high-risk children, serious emotional disturbances, and mental illnesses, it is much more difficult to get through the treatment plan needs.

[01:46:47] It is not impossible. It takes a little bit more time. Our JobLink team that does employment will work to help solve problems around employment, and we have good working relationships with DARS and the Department of Aging and Rehabilitative Services, and with the county's Workforce Resource Center.

[01:47:11] so um do we encounter difficulties at times we do but i will say that the county has a very hard working keep going till you get to achieve the treatment plan set of case managers well i think case management is one of the one of the more difficult positions for all the reasons we've talked about and your staff does your staff does emotional work and you do it every day and you all do it very very well and I and I always say you all take care of yourselves because you are the

[01:47:48] people to take care of the people in so many ways and so thank you for what you do and thank your staffs uh for for all of us um please um I'm I'm not going to make any motions right now to um to do anything different and I will ask my colleagues to are there any motions on the dais seeing none thank you so much thank you supervisors let's go on and do building and

[01:48:12] development and then we'll take a break page 51 is building and development good evening good evening so I'll start by saying thank you for taking us before your break I'm so sorry housing and community development so sorry good evening chair Randall and members of the board thank you

[01:48:49] for consideration of building and development's request this evening with me I have Paul Hale who is our analyst, and Gwen Kennedy, who is the division manager for our natural resources. I think you've all worked with her a bit, and this team will be under her supervision, and Jessica Furman, who is our budget, well, she's our financial supervisor, and she oversees the budget program for building and development, and sitting behind us, because I was told I only had three seats is Scott Berger, who is my deputy director, who has been around

[01:49:28] for a very long time and understands a lot of the ebbs and flows of this. So over the past year, building and development has remained highly active, continuing its participation and leadership in almost all of the task groups, working on the Alvarez and Marcel assessment, cooperating with industry in this effort as well, been a very, very fulfilling endeavor. In addition, we have continued to develop the department-wide strategic plan incorporating our succession and professional development plan, a training program, and some

[01:50:08] other miscellaneous programs into one so that we can get all our priorities in the right direction. We hope to have this completed probably early next fiscal year. We've also been collaborating with human resources to look at reclassifications and reorganizations that might help improve the efficiency of the activities that building and development encounters.

[01:50:37] And while we recognize that performance data really drives resource requests, we believe that all these efforts have helped to inform and prioritize our requests for additional resource needs. So that being said, this year we are seeking to establish an enforcement team within the natural resources division.

[01:50:58] It will be comprised of one team lead and two enforcement case managers. This team will strengthen the county's enforcement capabilities related to both chapter 1096 of the codified ordinances, which is erosion sediment control and stormwater management, serve as subject matter experts offering technical assistance and ensuring facility standards manual requirements are met in support of zoning enforcement teams actions to resolve complaints and violations related to the Loudoun County Zoning Ordinance, primarily chapters

[01:51:33] five and six, which include such things as mountainside overlay district, steep slopes, river and stream corridor resources, limestone overlay, soils, forestry, invasive species, wetland disciplines, floodplain programs, and many others.

[01:51:51] We believe these positions will allow building development to make additional progress in achieving our recommended service levels, helping to ensure our compliance with the state-regulated state code requirements of stormwater and erosion sediment control, and to properly support planning and zoning and enforcement of the overlay districts and natural resource areas. This increased staff

capacity will lead to enhanced service levels by facilitating efficient resolution of violations from identification through compliance and will allow staff to work with the

[01:52:29] property owners to achieve compliance through education information or hopefully to prevent violations entirely. Some of the specific efforts will include public outreach to enhance landowner understandings of regulations including when permits are required, the necessary documents to achieve those permits.

[01:52:50] We hope this will reduce complaints and increase compliance rather than enforcement. Staff collaboration with property owners in active permit permitted projects to help resolve and achieve compliance earlier and more quickly instead of it escalating to our stop work orders and notices of violations which take significantly more staff time and other county resources.

[01:53:19] And finally a greater capacity to resolve some of the longer outstanding violations in our coffers that we've been unable to carry through because of some of the staffing challenges. So just a couple of numbers from fiscal year 2023 to fiscal year 2025 natural resources staff investigated an average of 172 resident complaints each year.

[01:53:46] The reason I proposed an average is because this does fluctuate a little bit based on activity, weather, location, so we thought an average was a better representation.

[01:54:02] This workload has significantly challenged the timely resolution of a lot of these cases, often falling off the books for a while until we get back to it and certainly precludes efficient resolution and puts at risk our role as a VESMP authority and under our municipal separate storm sewer permit obligations.

[01:54:30] If existing staff is required to continue to handle these complaints and violations without additional support, it will hinder our ability to achieve compliance and delay some plan and permit reviews due to staff having to split their time between their regular duties of plan review and permit review and enforcement of violations.

[01:54:52] So the addition of this enforcement team will benefit the department and we believe aligns with the Board of Supervisors' goals and initiatives, including the changes that resulted from the adoption of the LCCO in 2023 and the potential impacts of adoption of the Western Loud and Rural Uses activities.

[01:55:15] So Mr. Hemstreet did recommend this in his budget. Thank you, Mr. Hemstreet. And I'd be happy to answer any questions you might have. That was really very complete. Thank you so, so much. Ms. Kennedy, it's good to see you. Supervisors, do you have questions?

[01:55:32] Ms. Umstead. Thank you, Madam Chair. I just want to say, and I don't have any questions, but I want to say I have been so impressed ever since you came on board with how responsive you are to every question we send your way.

[01:55:51] You're one of the fastest people to get back to our office when we have a question, and you have been so thorough in your responses, so my feeling is whatever you want, I'm for it. Thank you.

[01:56:07] Ms. DeCrony. Well, I don't have a question either, but I do want to say that I really like that you're looking to address compliance issues early and to educate before it gets to an enforcement status.

[01:56:26] So I really appreciate that. I appreciate how you guys work with residents and applicants to educate and to get them into compliance before there is a violation. So I really appreciate that as well.

[01:56:43] Thank you very much. Thank you. Mr. Sainz. Thank you, Madam Chair. It's good to see Ms. Kennedy again. And then, Paul, good to see you as well. How long have you been with us now? Put your mic on. It's good to see you too. How many years have you been with us now?

[01:56:59] How many years have you been with us now? About four. Damn, it's been four years. Well, to the thousands, sorry, to the thousands watching at home. Family, it's a family program. It's a family program. Sorry, to the thousands watching us at home, but I'm going to do a shameless plug for our internship program. We came to know Paul four or five years ago now. He started in our internship program, rotated through a lot of different departments, and obviously he selected his one department that he liked the most.

[01:57:27] So if you are interested in a government job, sign up, look at our internship program. It works. and we have a great internship program. So sign up. Thank you. What are you doing right now? What are you doing? He has a job.

[01:57:51] What's he saying? It's an example. He's a good example. Loudoun County is hiring folks. Check us out. Oh, my gosh. So unbelievable. So I would say anything that Ms. Kennedy is going to supervise, you're probably going to give a yes from us because we are used to her amazing work.

[01:58:15] I think I did hear you say that this could move the whole process faster. And we have had discussions, so many discussions about how to move all of our application processes along quicker. And if this is, you know, and we have gone out and talked to the industry and talked to stakeholders and, you know, comes to people so if we can if this is one more way to move our process processes faster whether it be whatever type of development it may be um then i am all for doing that because we do need to focus on on that it saves the staff headaches it saves applicants um finances it it's just a

[01:58:54] better way and we know it's gonna we know the issues fast so we're we're very happy with this I do not believe there are any motions on the dais. Thank you so much for all the work you all do. All right, thank you.

[01:59:11] Supervisor, Mr. Sains needs a break. So we're going to take 20 minutes.

[02:02:14] Okay, we are back.

[02:28:29] Thank you for allowing us a break. We're going to go to the Housing and Community Development Department. That is pages 83 through 85. And good evening, everyone. Good evening, Chair Randall and board members.

[02:28:44] I hope you're all full and ready to go for the rest of the... Full and not sleepy. Eric Keeler, the Director of the Department of Housing and Community Development. I'm glad to be joined by my department colleague, Brian Regan. And first and foremost, I wanted to say thank you to the board for your overwhelming support for the housing programs over the last several years and your continued dedication of local funds for attainable housing development assistance for county residents and workers. I'm proud to report the Department of Housing and Community Development is fully staffed and out of the three positions

[02:29:21] the board approved last fiscal year all were hired within the fall period and are still with us. We are here tonight to review the two resource requests pages 83 and 84 and the one alternative request for our department on page 85. We continue to focus on core services and the pathway to stabilization with

the main theme tonight being financial management. To that point, DHCD is requesting additional finance specialists to sustain the current service levels within our finance division. As a continued effort to staff the financial management of the department as

[02:29:57] programs and funding levels continue to increase year over year, the finance specialists will allow for the separation of duties needed to maintain quality financial controls within the department. In the last few years, a number of programs have been added to our portfolio, such as the Dow Payment Closing Cost Plus Homeownership Loan Program, which now has a dedicated funding source, thank you, the State Rental Assistance Program for Individuals with Disabilities, and the expansion of our Attainable Loan Program. The workload demand on the current financial analyst has continued to increase, and the department has 15

[02:30:35] programs and seven different funding sources that we are monitoring and working within. Secondly, DHC is requesting two positions as part of our Finance and Development Division, the Housing Finance Project Manager and the Housing Finance Specialist. The project manager will be an additional staff person to administer the county's attainable loan program and will help lead the implementation of the public-private partnerships and homeownership initiatives that will help finance and develop attainable housing. I will note we are currently have ten approved loans that we're actually moving to close the number of loans applications submitted the county for consideration

[02:31:15] in the last few years and has literally increased 400 percent over the previous years again say that again 400 over the previous years very good brian made sure that i noted that so with the exponential growth in the county's loan programs and the finance development division has not had a staff member added to the team in the last few years additionally within the the division the finance specialist will serve as the department's asset manager to administer the accounting compliance and monitoring functions associated with the county loans that we've put

[02:31:50] out there. So we currently have six loans that are about 14 millions that are actively being serviced but we have those 10 new loans which are under 66 million and then additionally on top of that and if coming years we'll have almost 130 million dollars worth of loans that we will be servicing and monitoring.

[02:32:10] So it's a critical, these are critical positions for us to make sure that we are staying financially sound and really monitoring our partner's work and making sure that good use of the local dollars continues for the decades to come.

[02:32:25] The alternative request that we have is for an administrative assistant for the Housing Choice Voucher Division. This is really a customer service related position that helps in the wait list we all know was open in October 23, we received almost 1,200 households that applied. We currently have 800 households that we're serving through the voucher program with 700 or so on the wait list.

[02:32:53] So the physician is critical to updating application data on a regular basis and maintaining records within our software system. The physician ensures that clients and applicants receive a response from our email box in a few days versus and lessens the burden on the existing staff that are working with those 800 clients that we have takes the burden off of them to give a designated person that can do scanning, uploading clients' files, and managing the wait list, which we do ongoing and make sure that we refresh and are in constant contact with those residents that are waiting to get into our program. I'll say thank you for the opportunity

[02:33:33] to debrief the board. Any questions? Thank you so much. We really appreciate it. This department It has come up and grown so quickly by necessity, but you all have done a phenomenal job. So questions, Supervisors, put your lights on, please, if you have questions.

[02:33:51] I can ask one. You sure? Okay, Ms. DeCrooney. Mr. Killer, thank you very much for the presentation. So for the Housing Choice Voucher and the State Rental Assistance Program, do you have nine employees currently doing that?

[02:34:12] Yes, well, they're separate. So the SRAP for- Oh, I'm sorry. I'm sorry. I can't hear you. So they are in separate pots within our office and different components.

[02:34:31] The SRAP has a position to itself that works with those clients. And then HCV is separate. And the majority of those are federally funded through the voucher funding that we get. Yeah, and that looks like that's going to be flat, right, for the next few years as far as the money from-- - Absolutely, that's the expectation.

[02:34:51] - From the federal government, okay. So you think you need one position just to help manage these programs? - It really is helping managing and making sure that we're doing the best job we can and allowing those counselors to work with that versus doing the working with the inquiries that come in from day to day and really the component is continuing manage that wait list and to relieve that burden so that they can do a better job and really stick with their clients that they're working with versus all the other inquiries that come in related to the voucher program. Now I noticed Supervisor Bresman asked a question about ARPA

[02:35:30] funding and that that had expired for our rental assistance. You said utilizing I guess what we would need is 8.3 million to really reach the level that was provided with the ARPA funding, is that correct? If we were to continue that program the way it was currently set up, that would be the ongoing. And is there a demand for that program that we had?

[02:36:01] There is a demand. They continue getting applications, I would say, and I've had some discussions that we don't, you gotta always remember that that program was set up under the ARPA program and under those guidelines so I think our suggestion and recommendation would be to not continue it as is and to continue and to make sure that we are serving a population maybe a little differently and make give come back with some recommendations as to it if we were to continue a program that we would revise it and because again it was set up based on funding that that came from the federal government with certain requirements and pieces related to COVID,

[02:36:41] and that's not the case any longer, obviously. - Okay, okay, thank you very much. - Thank you, Mr. Oh, Ms. Bricksman. - Thank you. For the ARPA-funded rental assistance program, the temporary rental assistance program, how many people are on the waiting list?

[02:36:56] - So there's not a waiting list. They're being served as they apply, right? Currently, there's 30 people that are allowed in CARES. remember it's it's an outside that's right that is doing this and it's not our office we are we're the contract administrators within that okay so okay yep and then uh i guess on the housing voucher uh program the federally funded program i think you told me the waiting list the other day that is about 700 that's on the wait list 700 are on that wait list and are those housing vouchers there for rent rental assistance or renting rental um we all there is a component where somebody

[02:37:33] could work on and that we were working on and his position that was we got last year to work on the possibility of getting to home ownership with a voucher there is a component of that program within within the voucher program and when we did the arpa program did we take people off of that waiting list or was it kind of a different thing totally different totally separate application um from from the wait list okay okay but suffice to say that um when the arpa program um ends we will have some folks including the did you say 700 or 800 on the waiting list seven on the wait list

[02:38:12] 700 on the wait list so so we will still have a need in loudon county for rental assistance yes i think it's it's for us to continue to find what that rental assistance should be and what type of program would be the most optimum to efficiently use our resources.

[02:38:32] Exactly, exactly. Okay, well, I definitely look forward to working with you guys on that. Thank you. Ms. Umstead. Thank you, Madam Chair. I was reading an article recently on what's been going on, I think, down in the Norfolk-Newport News area, which is people may have vouchers, but there's so few properties that participate or will accept vouchers.

[02:39:02] Are we running into that problem here as well? So a component of that is if we can, people with a voucher can get into a tax credit project and pieces and that, and they will accept. I mean, that's, you know, we also have a landlord outreach within our staff with Brian's team that does constantly that.

[02:39:23] We actually have a portal where they can put information in about a rental unit that they want, may want to get a voucher holder. So we have constant, I think in the next month or so, Brian, we have an outreach event with landlords that is coming up.

[02:39:40] Thank you. Mr. Vice Chair Turner. Thank you, Madam Chair. So Hott awarded \$2.6 million for the Housing Choice Voucher Program in 2023, and based Based on your earlier comments and your exchange with Supervisor Tacroni, it sounded to me like you don't have any expectation that there will be additional funding forthcoming.

[02:40:03] Is that -- am I saying that correctly? Correct. Yeah. At this point, the federal budget is not -- that's not an effort. It's maintaining, you know, like the HUD budget really is a maintaining of existing programs. Okay. So help me understand then. Does that mean that -- because your metric is 100 percent of the recertifications processed on time.

[02:40:23] Does that -- if we get no further funding from HUD, does that mean people that are using Housing Choice Vouchers now, we'll no longer be able to use those? No, we're getting the funding. We're just not getting additional funding to be able to. So we can maintain. So we have enough funding to continue to maintain about 800 households that are getting vouchers right now.

[02:40:42] We don't expect that to not be able to serve. We will always be able to continue to serve those 800, but we have to recertify them on an annual basis. And there's lots of different components, and that's a way that we have some turnover, honestly. If somebody doesn't get recertified, then it could free up a voucher because of their own actions.

[02:41:01] So your alternate priority three request is basically to help you maintain this metric with the existing population on housing choice vouchers. Okay, thank you. I had a lot of those same ARPA questions, and so I think most of my questions have just been answered, and if not, I'll get a hold of you.

[02:41:18] Just a couple of questions in general. Could any of these positions be used to help with, I'll use a term Mr. Crony kind of came up with, grant prospecting, prospecting for grants. Could these positions be used for that at all?

[02:41:36] So I think a component of our multifamily loan is looking at leveraging dollars, right? You know, so within that team, they are always looking at additional resources. It may not be resources that specifically come to the county directly, but it's conversations with the state and making sure, so there is kind of that component always to all of our work.

[02:42:01] Okay. That's a great answer. In general, I want to be clear that I in no way think that every time we have an attainable housing unit or a family that needs attainable housing that they need wraparound services because there's a lot of reasons somebody may need an attainable home, a lot of reasons.

[02:42:22] However, there are times when somebody does need wraparound services. In general, how do you make those decisions? And you talked about what's kind of in the pipeline coming. Are any of those projects in the pipeline coming projects that involve other services for an attainable home project?

[02:42:43] So, absolutely. That's a component of, I think, one of the revisions and the scoring that we added was resident services and wraparound components. And I will tell you right now, our office is out talking to on an annual, you know, a regular basis.

[02:42:59] Two of the different partners, Jose in our office, is out setting up meetings. It's a part of the unmet need plan is for us to communicate with the partners and to connect with our office. And the partners that are building the attainable housing and making sure that they are aware, you know, there are components of food banks and pieces that actually go directly to some of our properties, and they have drop-off locations there, especially on the senior properties, that that's a component that we know that food, you know, insecurity is a major issue.

[02:43:32] So continue to work with them. But it is a conversation, and we're really hopeful that as we bring new partners in from other parts of Northern Virginia, that they are also bringing best practices that they have in those locations. True Ground is an example. They have a robust, you know, resident services program because of the ability of that organization to be large enough, and that's, it's the scale that really brings resident services also. So if, you know, you all are doing so much, as I said, this this apartment is a fairly new apartment, and you're doing so much, you know, I am constantly

[02:44:10] finding out something else that you're trying and trying to do to get more attainable homes in here in the area. Talk to me really quickly about homes like transition homes, transition apartments or transition homes, and do we have enough of those?

[02:44:26] So it's an interesting, there was a push from the federal government to go away from transitional housing um through the funding um components and get to more permanent supportive housing and components of that and but now we're under the trump administration they flipped it back um where they're pushing for that's the type of funding that they're looking at um so it's shorter term right getting somebody up and they're and supporting them during a couple years um we do have some partners in the um in the county that are doing that on their own with their own money to own and have some leased space. They may have a master lease as an organization

[02:45:03] and then are placing their clients in there. So it's a model that we could continue to work with the community and looking at opportunities. You also have to have a willing landlord that's willing to have

a master lease with somebody and allow. So those are models that have been used for decades. You know, we have, I don't think we're directly funding any of those as a county, but our partners may be using community-based funding to be able to do that.

[02:45:34] Oh, okay. I see. I see. I see. Well, first of all, thank you all. I know that you've had to scale up a department very, very quickly, and you've done an excellent job, all of and I kind of was standing back and watching and all that we're doing we have more to do but we're doing so much already and we appreciate you and your staff so much. I have no motions to make right now and I'm not going to make a motion for the alternate unless let's wrap up we have those discussions but

[02:46:11] does anyone else on the day has any motions for this department? Seeing none thank you so much all right thank you thank you miss briggsman you just handed out some motions when would you like to make these motions at the end of every one because planning and zoning have already oh no they haven't yet so you want to make them when would you like to make these motions after planning and zoning yes during during the planning and zoning and i think supervisor kirchner is going to make them yeah are you really during the planning and zoning discussion i'm fine

[02:46:47] I'm just asking yes that that was the plan I'm just asking um yeah all right so right now we have mapping hello hello it's nice to see you all hello good evening thank you ready when you are thank you and good evening to you all I am here with Trent Small GIS division manager of Omagi's development and analysis division and Paul Hale our budget analyst who actually needs no introduction tonight. I'm here to speak about our request for one project, a GIS analyst 2 for the development and analysis division. This position is not

[02:47:27] included in the proposed budget, but Mr. Hemstreet has included it as an alternate scenario. This division provides GIS data development and maintenance, geospatial analysis and modeling, interactive maps and dashboards, and custom mapping for use by other departments and the public. The requested This position would fit between the division's GIS Analyst 2s and the GIS Division Manager.

[02:47:52] The position would serve as a project lead for our more complex project request. These include requests for GIS solutions that require multi-team member collaboration, that are higher priority, or that require a faster turnaround time.

[02:48:08] The demand for OMAGI services has grown in the number of requests we receive and in the complexity and priority of those requests. Before COVID, each project assigned to this division could generally be handled by one person. They were one-person type of projects.

[02:48:24] Examples included map production or the development, analysis, or maintenance of GIS data. The nature of these requests began to change about five years ago. Departments have been increasingly contacting us for GIS solutions that either directly or indirectly support board priorities.

[02:48:41] We now routinely develop solutions that are more complex in nature for more departments. In the last year, this team conducted analysis or deployed GS interactives for 19 departments. These included requests for GS solutions that help other departments do their work more efficiently.

[02:49:00] An example of an older, more complex map that has seen a lot of use lately, particularly this winter, has been the Who Maintains My Street map. This has a simple interface, but it actually required extensive data collection and coordination between BND's bond management team, Omagi's land records division, and public affairs and communications. An example of a more recent tool is called LandMap.

This is an interactive that we built for the BND engineering division to manage the review of residential and commercial applications. As I shared during my recommended service levels presentation to finance and

[02:49:38] government in November, we have begun to track metrics to reflect project request complexity and priority. Of the approximately 100 project requests the DNA division has completed since last January, 25% were classified as either highly complex or high priority. Due to the need for higher level multi-department and sometimes external stakeholder coordination, these projects have been directly managed by the division manager. This work is now taking the majority of Trent's time. We were sitting in the back and realized that over the last year, this division has provided GIS services to all of the departments you've heard

[02:50:15] from tonight. The addition of this position would allow the division to continue to develop and deploy GIS solutions in a timely manner. It would also allow the division manager needed time to manage the highest level projects, collaborate with department leadership on strategic planning, and support the division. In addition, the solutions we've been developing could be adapted and shared with teams across the county. Many of these have been built to help county staff do their work faster and more efficiently. We have not had the capacity recently to proactively reach out to other departments to offer these services as we have done in the past. In summary, the division

[02:50:54] is fulfilling project requests, but requests to become more frequent, more complex, and of higher priority. This is diverting time from department strategic planning, process development, and proactively working with other departments to provide solutions. We are responding reactively rather than proactively the addition of this position is considered an existing service level need thank you and in closing i would like to note that 2026 is the 40th anniversary of the gis at loudon county thank you very much uh do we have questions this is the an alternate um

[02:51:33] quest but do we have questions i have two questions well i have two questions and one one comment are we still working with esri we are yes okay good they are fabulous i i do want to say that people may not know all that your department does and I want to thank you because one thing I think people don't know is that you all have been helpful in in trying to pinpoint locations where we know lynchings lynchings happen in Loudoun County so we could put markers on those places and when you think of like mapping and you know you just don't think of something like that

[02:52:11] but you all have been incredibly helpful you've been in those meetings and it means a lot that we now have two markers down and we're working on the third one. And we know very closely where those happens both from this historical research done by Michelle Thomas and Philip Thompson and others, but also from you all trying to figure out what was that road back then and what is it now and what happens. So the telling of Loudon history that doesn't always get told you are you've been a huge part of that this past couple of

[02:52:50] years and I just want to acknowledge that and thank you all for that. Thank you very much and we are happy to help. So it's a little early for me to add in alternate positions right now again we may be doing this and wrap up but I'm not going to make any motions right now. Are there any motions on the dais right now? Seeing none thank you for all your work and we may see you back on the 12th. Thank you and have a good evening. Thank you. Planning and Zoning, pages 98 through

[02:53:19] 100. Hello, hello. I feel like I haven't seen you in a long time. How are you doing? That's because I wasn't at the board meeting last week. One time. We are ready when you are. Thank you. Good evening, Chair Randall, members of the Board of Supervisors. I'm Dan Galindo, Director of the Department of Planning and Zoning. I'm happy to be before you tonight with Deputy Director Judy Burkett at the table and Zoning Enforcement Division

[02:54:09] manager Keith Fairfax in the audience to represent the Department of Planning and Zoning and its hardworking staff. For many years DPZ has maintained a heavy workload of board-directed projects that plan for and or regulate land development and economic development within Loudoun County. These assignments include the zoning ordinance amendments, conference of plan amendments, and historic preservation projects that are detailed in the quarterly department work plan items. In addition to these projects the majority of DPZ staff handle daily activities related to land development review enforcement of adopted regulations and customer service.

[02:54:41] Last year the board graciously approved 10 positions largely in support of the department's land development review work and I'm happy to report that eight of those new positions have been filled thus far. The department's resource requests for fiscal year 2027 are focused on enforcement of adopted zoning and other regulations in support of board priorities.

[02:55:00] As the board will recall the department presented an overview of the Virginia property maintenance code at the board business meeting on July 15, 2025, covering the sections adopted and currently enforced by the county, as well as additional provisions of the maintenance code not currently adopted.

[02:55:18] At that meeting, the board directed staff to return to a future board public hearing to amend chapter 1410.01 of the codified ordinances to include any newly adopted maintenance code provisions with a targeted implementation date of January 1, 2027.

[02:55:35] the board directed staff to prepare resource requests to provide appropriate staff for the zoning enforcement division during the FY 2027 project process. Our largest resource request tonight implements the board's direction with the request for one supervising zoning inspector, four zoning inspectors, and one planning technician. These six positions are needed to enforce the additional maintenance code provisions that are expected to be adopted later this year and should also help relieve the excessive caseloads that zoning inspectors are currently managing. The board's second board priority resource request is related to proactive enforcement in Western Loudon. At the January 22nd, 2026 Transportation and Land Use Committee

[02:56:14] meeting during consideration of the Western Loudon Rural Uses and Standards CPM and Zoning Project, TLUC recommended that the board direct staff to bring an action item to a future board business meeting seeking direction on their interest in pursuing proactive zoning enforcement for non-residential uses within the rural policy area. Staff plan to prepare an action item for the May 5th, 2026 board business meeting, at which time the board will have an opportunity to discuss TELUX recommendations and provide staff direction on how to proceed. During TELUX discussion on the Western Loudon Rural Uses and Standards Project, part of the feedback the county has repeatedly

[02:56:50] received from stakeholders is that enforcement of existing ordinances is as important as any of the modifications of the zoning ordinance that are being considered. For this reason, proactive enforcement and this resource request were separated out as an independent issue from the ongoing

review of the general plan and the zoning ordinance for Western Loudoun. Now regarding the term proactive enforcement I would like to highlight that this can be defined in different ways and should largely be considered as various actions seeking to put the county into a stronger position to issue any necessary notices of violation and a shorter timeline to resolution of complaints. The board has previously provided direction for staff to conduct

[02:57:28] proactive enforcement in parts of the Sterling area which involves staff actively driving the area to discover potential zoning violations. However the The board could also authorize actions to increase the availability of zoning enforcement staff on nights and weekends while remaining complaint-based.

[02:57:43] The availability of staff across additional workdays and hours would improve the department's ability to respond to after-hours complaints, observe additional potential violations, and take more efficient action. DPZ has requested one supervising zoning inspector and two zoning inspectors that would provide the enhanced service level of some version of proactive enforcement.

[02:58:04] I suspect that the expanded hours option would be where we end up when considering additional enforcement in Western Loudoun. While not included in the proposed budget, I'll also summarize an additional resource request included in the County Administrator's alternative scenario, which is a senior planner in DPZ's Customer Service Center.

[02:58:22] This position would enable tasks to be better delegated consistently, fairly, and equitably across the Customer Service Center, where there is currently a gap from three Planner 2 positions to the principal planner and division manager supervising the division. The senior planner position is also necessary for the department to implement a plan to enhance its level of service by enabling the customer service center to assume responsibilities from the zoning administration division to create a single point of contact for more applications and all pre-application meetings.

[02:58:51] The senior planner would also assist with zoning determinations and zoning verifications that would enable zoning administration staff to reallocate time toward review and guidance for various county and Loudoun County public school projects. In the past year, the department has completed phase one of the data center standards and location CPAM and ZOAM.

[02:59:10] The Rural Historic Village Classification CPAM, the St. Louis Village Plan, the Gloucester Parkway CPAM, and the Runway 30 Aviation Noise Mitigation Project. In addition, we have initiated and are currently managing eight CPAMs, OAMs, and Historic Planning Initiatives, along with the Administrative and Legislative Land Use Review Assessment Project, and more projects are planned for initiation during the next quarter.

[02:59:32] Meanwhile, we continue to process hundreds of active legislative applications every year and hundreds more reviews and enforcement actions every year. We anticipate yet another busy year, and we appreciate the Board's continued support of the Department of Planning and Zoning staff. This concludes our presentation, and we're happy to respond to any questions.

[02:59:49] Well, thank you. Thank you very much. Mr. Hemstreet, because there is a motion on the dais around and about proactive zoning, I want to make sure that when the motion's made, we understand what these positions would be for, Because, as Dan just said, it could be something like what's happening in Stirling where people are driving around to look at zoning violations.

[03:00:16] Or it can be literally someone reports an issue and you have a person available to go out when the report is made. So it's still complaint-based, but the response is much faster.

[03:00:33] So I'm not quite sure, and I'm not sure if anyone else is. I'm not quite sure what type of proactive zoning we're talking about when we're in these positions. Can you help us out with that? Sure. So this is a budget discussion.

[03:00:49] I think what Mr. Galindo said in his remarks is that we are due to come back to the board, provided this remains in the budget, to put together the program. Because remember, this is the FY27 budget. The earliest that this would start would be July 1st.

[03:01:05] So there is still time to define exactly what proactive enforcement, in this case, in the rural policy area for non-residential uses, would look like. And so because of timing, we were trying to meet the FY27 budget, which was the request coming out of TLUC.

[03:01:24] So that's why the request is here, even though the discussion on exactly what the enforcement piece would look like still needs to be further developed. Just to remind everybody, the other conversation coming out of TLUC was to split what is happening with the rural Loudoun or Western Loudoun, sorry, Western Loudoun, rural uses, CPAM and ZOAM, right, and address enforcement separately because one of the common themes we were hearing out of the stakeholders' meetings was that one of them was you don't need to do anything to zoning ordinance.

[03:02:00] One of the issues or concerns that came out of there is doing better enforcement of the existing zoning ordinance that's out there. So whether the board modifies the zoning ordinance in Western Loudoun or does not modify the zoning ordinance in Western Loudoun, enforcement or questions about enforcement and how that occurs with the zoning ordinance will continue to be an issue or a question out there.

[03:02:22] So what this is from the budget side is just to set aside what we think is appropriate, which is three positions to address primarily or be able to react to primarily zoning, the type of zoning complaints or zoning concerns or however you want to phrase that, that we were hearing a staff coming out of the stakeholders discussions at a time when the staff would be available.

[03:02:47] So I think Mr. Glendo and his team intend to have these positions available maybe Thursday, Friday, Thursday, Friday, Saturday, Sunday in the evening hours. And to do, I think you phrased it very well, Madam Chair, if someone calls today and there's a noise complaint about the zoning ordinance, that's not enough for somebody to go out there.

[03:03:14] So the only person that can respond is a sheriff's deputy to talk about noise with respect to the codified ordinance. So right now, the way the process works is someone would have to file a complaint, typically through the Lex system, and then zoning enforcement would take that as intake and then schedule somebody to go out on some random hours, some other time to see if they can catch the same activity happening again.

[03:03:40] So what this is is a proposal that would address that issue, which means as long as it's happening when these folks are working and we would have to work with the schedule a little bit to make it so it kind of meets when we think or when the demand is happening, you would have somebody ostensibly that's available to go out and look at that condition.

[03:04:02] and because it's more I mean proactive is a 2005 era term so we I think what Mr. Glenda is also saying is correct me if I'm wrong but is we can still define what that means and so there's a lot of speculation as to what it means but we still need to bring something to the board and you need to tell us and decide exactly what you want it to mean however it would the intent is to have somebody available to address what we had heard through the stakeholder process was a concern about enforcement being available when it needed to be available. I understand. That was very helpful.

[03:04:40] Thank you. Thank you. Okay, supervisors, you have questions for planning the zoning. Ms. Bricksman. Thank you, Madam Chair. So I'm going to stick with the, thank you for your presentation and all the hard work you do. Are you fully staffed yet? No we have 10 open positions at the moment. Okay I'm going to stick with the proactive zoning enforcement because it did make me a little bit nervous given the conversations that we've had before about proactive zoning enforcement in

[03:05:15] certain parts of the county and it was basically folks driving around and trying to find zoning issues. And so that does make me a little bit nervous that it's undefined at this point as to how this program would play out. Have you had an inundation of complaints though from Western Loudoun as far, like more than normal in the last couple years or something like that? We have not. I think actually we have probably received less complaints, but

[03:05:51] I think the reason for that is that if someone has a complaint about a special event that they don't think should be happening or noise that's occurring late at night or on a Saturday or Sunday, they really have no reason to contact us because it's not something that we could go proactively do. I shouldn't say proactive.

[03:06:07] It's not something that we can go research in that moment because we do not have the staff available. So we send out someone at 9 a.m. on Monday. The moment has passed. Right, right. I got you. So how many cases does each inspector have at this point in time? So right now, depending on the inspector and their seniority, they've got somewhere between 60 and 80.

[03:06:25] Now that's inflated because of open snow cases. I read that. It's inflated because of the snow and stuff. I did read that. Usually closer to 50 per inspector. Thank you. So what would happen, say, in Eastern Loudoun? So, for example, I've gotten e-mails from time to time about noise at a particular restaurant or a bar.

[03:06:46] So, you know, they would also have to just call LCSO or wait for zoning to be in office, correct? Well, so if the three positions are approved and we can hire people that work those later hours, they would be available to respond to anything countywide if something comes in at that point.

[03:07:07] They're not only going to be restricted to just working in the rural policy area. But the impetus is the discussion coming out of the Western Loudoun Project occurring right now. Oh, so the three positions might cover the entire county. Do we really want to be doing that with our zoning staff on the weekends to be responding to every single noise request that you might get from Dulles to Sterling to Ashburn to Algonquia?

[03:07:34] And that seems like it would take 10 staffers if we really were to do that across the county. So, I mean, I guess maybe that's why traditionally it's just been with the law enforcement.

[03:07:51] It is, and law enforcement actually has the ability to take action in the moment in a way that zoning enforcement does not. And so when it comes to noise, and it's one of the things that I know Mr.

Fairfax and his team try to inform people, their first call really should be to the sheriff's office to try to capture those things in the moment.

[03:08:08] So we are another tool that can work hand in hand with them, but it is a little bit different. we operate under different ordinances but your points your points well taken i guess i should i said that off the cuff not fully thinking it through it could be an issue if we do allow it everywhere so that would be something that we should work through um if the positions are given to make sure we've got clear direction for the three inspectors that we're working at that time thank you miss umstead uh thank you madam chair so there there are two competing philosophies

[03:08:42] up here right now on the dais um and i what i am interested in is if there were let's say a farm in which they had an agricultural barn and it was meant for horses or donkeys or llamas but on a weekend they converted it into a dance hall and it was not safely built for use for that

[03:09:18] purpose. Is that something you might envision your three additional folks looking at just proactively? So it's I think having them working either in the evenings and or on the weekends gives us the opportunity for the staff to see those things firsthand and so if a call comes in that they can respond to it gives them the opportunity to go and make that documentation that right now we're missing and so therefore we can't usually take any action regarding that unless there's another way to determine what has actually occurred so it is something they could

[03:09:57] look at and again with the term proactive it all depends on what the board decides proactive should be it could just be enhanced hours still responding on a complaint basis or it could be something beyond that okay thank you mr crony uh thank you chair randall so i'm trying to find the motion so i i do want to let my colleagues know that we are not that motion the motion on enforcement um i i do want to let my colleagues know that we are still working on the western loud and um

[03:10:30] rural uses and standards. We still have one more meeting on March 18th, and then it's coming to the board at the first meeting in May. I believe that the motion regarding proactive enforcement was only Western Loudoun County. And yes, I'm looking for the motion right now. And that it was uh and there was a second motion about an inventory to help staff can you explain the

[03:11:01] inventory maybe um miss burke could explain the the reason for the inventory the intent behind the inventory is to look at all of the non-residential uses in western louden and check to see if they have the appropriate zoning permits, if the uses is allowed, whether there's an address so that the fire marshal could access the site in the case of an emergency, and that

[03:11:35] inventory would create a baseline so that we could work with property owners, even if it's an educational way, you know, to bring them into compliance with the zoning ordinance. And a key part of that inventory is to ensure the safety of the public that are going in those in those buildings the barn that you mentioned that could be converted we might assume that it's a farm use and so it's exempt but once the public enters those buildings it becomes it's no longer an

[03:12:10] ag-exempt building and there are some requirements that they need to do to ensure the safety of the people visiting those buildings. Yeah, thank you. So what Mr. Hemstreet said is it is really about compliance, a lot of it, with existing zoning regulations and code compliance, state code compliance, you know, to protect the health, safety, and welfare of the public. In our discussion, we did discuss that some

establishments have come in as a barn structure and then which would exempt them from building code and fire prevention codes

[03:12:50] and they don't come in for a change of use. You know, they've changed their use to allow assembly of people and they don't come in for a change of use. And so I think part of this enforcement would be exactly working with the owners to get compliance with building and fire prevention codes to protect the safety of the public that are coming to these establishments so this is part of our discussion you know it has not come to the board yet and i would ask my colleagues to

[03:13:27] not support this motion i am not supporting the motion on the table because we have not had time to discuss it yet thank you mr latourno yeah thank you madam chair so i think the process and fundamental problem is that we're discussing a budget item for an initiative that is not fully baked that the board has not bought into yet that i have a lot of questions about others have a lot of questions about i'm not necessarily opposed to the concept around some type of resource to help address complaints about existing issues but i'm nowhere

[03:14:02] near ready to spend four hundred twenty thousand dollars in the budget to solve it when i at least because i'm not on telec haven't really even established what the baseline problem is so i So I understand what you're saying, which is that people wouldn't necessarily call and complain. But there were still 2,000 complaints that were investigated in Western Loudoun, of which only 45 were related to non-residential uses.

[03:14:28] And I have to imagine that that breakdown still tells us something about what the majority of the concerns were really about, which was about residential uses and not non-residential uses. I mean, do you don't think we can glean anything from that data? i mean i i think it is a honestly surprisingly low number whenever i first saw it too yeah i think if i think if residents knew that there was somebody that could respond more quickly we would like to get i don't think it'll be hundreds or thousands i would argue the opposite i don't think residents know there isn't until they call and then they're told that but i don't

[03:15:03] know that residents know either way so i don't the other question i had though is let's just say there is somebody and there's an event going on and we have a zoning inspector who's available and they go out to that event can they stop it can they shut it down they cannot themselves no so they have to call law enforcement to do that right so either way this has to get law enforcement involved you know if it's an ongoing event yes you can go back and cite the owner and then try to take some kind of enforcement action after the fact but not in real time right yes do we have any concept of how often the sheriff's office is doing that in Western Loudoun. I didn't ask that question

[03:15:41] in advance, so I'm sure you probably don't have that data. Not really. The data that they've shared with us isn't broken down in a way that's conducive to trying to answer a similar question to the one you posed. Okay. Okay. Well, we'll get to the motion when there's a motion, but I think fundamentally we're kind of just, the cart's a little ahead of the horse, and that's why we're all kind of tripped up on this. Mr. Kirchner. Thank you, Madam Chair. Yeah, this is something that I think I agree with Supervisor Letourneau. The cart is way before the horse. Can I ask when do we anticipate the complete process for the Western Lowndes OM will be done? December

[03:16:19] 2027. So we are in December of 2026. We're not even December 2027. We're talking about something that hasn't been authorized by the full board yet that's got to go through the whole process for active zoning enforcement. I just think this is so premature that we, and I'm not necessarily against some

of the concepts that Mr. Hemstreet has shared. I think it's very different than what some certain supervisors up here may want, but that concept that was shared by Mr. Hemstreet is very much in line with what I think is correct. I think the problem, the heartburn

[03:16:57] I'm having is this use of the language proactive. I think it really should be the proper language should be reactive enforcement. But for those of you who have not looked at question number 25, I'm just going to break these statistics down. Question 25 is what Mr. Letourneau just mentioned in his question. It was a very good question. Over a three-year period, or just shy of a three-year period, there were a total of 45 complaints to the zoning department.

[03:17:21] That's average of 15 a year. And of the total complaints that were made, that's 45 complaints of non-residential. Of those, that's only 2.14% of all the complaints made in Western Loud. I actually have the sheriff's statistics, at least for noise complaints. The noise complaints made by the sheriff between 2019 and 2024, it's a six-year period, averaged 45 complaints per year, of which 2% were actually resulted in citation, which is an average of one per year. So we're

[03:17:57] We're looking at hiring three FTEs in order to address an average of 15 complaints per year through zoning or one cited complaint a year through the Sheriff's Department.

[03:18:15] We haven't even authorized this as a board yet. It hasn't even been authorized. I think if we come back and we know what the definition is, we know what the enforcement is going to look like, that makes a lot more sense to address it then. The card is way before the horse. These three positions. I'd much rather take this money, and that's part of my motion, and put it towards a senior planner and other resources that are more readily needed than this particular resource is needed right now.

[03:18:40] And that's ultimately going to be my motion. So I did have one question. These three positions will not address the inventory per se. That can be done without these three positions. Am I correct?

[03:18:56] Yes, we could develop that without the three positions. Right. This inventory that we talk about and making sure there's some health in issues, this just addresses proactive enforcement. So, again, that's a little bit of a red herring. The inventory issue can be addressed otherwise. Thank you. Mr. Kirsten, just so you know, you can make one motion.

[03:19:14] You can do it. I further move and just make this one motion instead of two motions if you'd like to. Yeah, that's a point. Okay. Mr. Sains. Thank you, Madam Chair. Yeah, I'm not on TLUC, so I haven't heard all the conversations. But I have heard a couple of different things.

[03:19:32] So, Mr. Galindo, you mentioned earlier that the enforcement would be for Western Loudoun and Eastern Loudoun. So can you clarify that? Is that accurate or is it only for Western Loudoun? Because Supervisor Deconi, in your comments, you said this is only supposed to be for Western Loudoun.

[03:19:48] So the motion right now that's going to come to the board is only for Western Loudoun. So the clear direction for the board potentially would be just for Western Loudoun, not East, as I said. Because if it was Eastern, I'm like, oh, well, let's have some conversations here. You always need some more enforcement in Eastern Loudoun.

[03:20:05] And then we've heard conversations that people are not calling to complain from the stats that we're getting. But I don't know if, Mr. Fairfax, I don't want to put you on the spot or anything. But since

you're here, is it maybe the fact that people know that when they say Friday, Saturday, Thursday night, something's going on, if I call, nobody's going to come at that evening when I'm calling.

[03:20:28] Nobody's going to come until Monday or Tuesday when everything's all said and done. So maybe we're not getting any calls because people know nobody's going to come out anyway. I do think that that is happening. We obviously do not know the scale of what that might be if things were to change. But I do think that that is some of what is happening.

[03:20:44] Okay. And then the next thing, you know, it sounds like, yeah, there's obviously debate still going on in TLUC and the framing of what to do for this position. because, yeah, I think it sounds good in my eye to, you know, have folks ready to be available, say, a Thursday night, Friday, Saturday, Sunday, when we know a lot of events are going on and be able to work those hours that activities are going on and then respond accordingly.

[03:21:10] But we haven't flushed that all out yet. So if we were to, you know, I think Mr. Hamstreet, you mentioned this maybe in your comments, so forgive me if I'm repeating myself here, but I just want to make sure I'm hearing things right. If we were to take this out now and then TLUC votes and then this comes to the board in May, and I guess we still have until December to flush things out.

[03:21:31] So that will still give us time. And then maybe in the next budget discussion next year, you can put this back in when everything's all wrapped up in a bow, ready to go. Is that absolutely sure that'd be accurate to say and not hurt anything? Okay. All right. Well, thank you for answering those questions.

[03:21:48] Now that clears up some things for me. So now it makes me a little bit more comfortable to possibly take this out, especially if it's going to risk still working and flushing some issues out with um with the zoom so okay thank you thank you vice chair turner thank you madam chair um i just got a message here um in uh as of february is it true there are over 100 compliance violations in the west right now that are pending that has identified by the zoning enforcement division i think an interest group prepared that document that you're referring to and staff has not

[03:22:27] independent disregard disregard i didn't i didn't realize that i thought it was a fact i didn't know it was an opinion okay i see the the head zoning enforcer saying no no no no all right thank you um um taking the point and i was a little i had a question mark on my forehead about why we were addressing a budget item about proactive enforcement when the program hasn't yet been approved. And I've kind of been working on the assumption that after two years of stakeholder meetings, and I think Mr. Hemstreet alluded to this, and I think Mr. Crony alluded to this,

[03:23:06] after two years of stakeholder meetings, and I told Mr. Wilson the other day, as near as I can tell, all the stakeholders are unhappy with the walrus process. So you've probably got a pretty good product in your hands right now. This has been two years of the opposing, and I call them opposing sides not wanting to agree on anything. The single thing that the stakeholders agree on, please correct me if I'm wrong, that I remember out of those two years of discussions was we don't need new regulations, we just need you to enforce the regulations that exist.

[03:23:39] And I'm thinking that's where this is coming from. Ms. Burkett? That's 100% correct. We started hearing that when we began the zoning ordinance rewrite four or five years ago. That's their top issue in enforcement. So taking out altogether a program for proactive enforcement in the West or not in the West, is this proposal in the budget responding to that largely common concern from Western residents and that

these three positions could be viably used, particularly in the case of an inventory? I mean, if we take an inventory

[03:24:17] and we get a valid inventory and these three positions don't exist, who's going to go out and do the regular inspections to say, all right, the inventories, I mean, we're going to do an inventory for no purpose because we're not going to have anybody to enforce it for two years. So is it correct that there will be a valid use of proactive enforcement, even though we haven't defined the program, that there are existing compliance problems out in the West that they could then actively look at in the process, even without the program being formally, is there an effective use for these three people at this point in the process?

[03:24:52] So absent any direction from the board about proactive, enhanced, reactive, whatever term you want to use out in the western Loudon area, they would not have specific direction to go and focus on any one thing. So they would just become part of the pool of zoning inspectors that would be responding to things all across the county. Even if the three were hired to perhaps work alternate hours from the main team more than likely some of their 37 and a half hours a week is going to get spent on other duties as well and not solely on anything that might occur in western loudon so that there are uses for the positions for the other requests with the six positions

[03:25:31] they're going to those six are going to cover some of that too i don't know if there's not a specific desire to do something based off of the telec recommendation that we need the additional three right now the six is probably a pretty good start okay thank you so i you know i'm i'm sitting kind of in the middle of everybody on this discussion.

[03:25:49] First of all, I have to go into the direction of what Mr. Sains was saying. I don't know why these couldn't be used countywide. No matter what a motion said before, it's illogical to say that these, if you have an issue in eastern Loudoun County, you couldn't use that.

[03:26:06] You don't have to chase everything down, but I don't know why it couldn't be used countywide. That's the first thing. Secondly, I always know that people under-report because people are loathe to report on their neighbors, and so usually by the time a report happens, people are just so fed up.

[03:26:23] And so I think the reporting numbers, I don't always -- I mean, it's all we have to go on, but I don't always believe them. I'm wondering if maybe -- let me ask this question, and colleagues just kind of respond. If we said we'll take one of these positions, not all three, and that one position could be used countywide, because I'm not convinced that we shouldn't do anything right now.

[03:26:49] But I'm also not convinced that we need three positions before the process is even done and the process will not be done until next year. If we did one position, it would be about \$141,000 for a total, even if we added in the new planning, the alternate planning resource position, it would still just be \$312,956.

[03:27:16] And so it would still save money, but we would have one that we could work with county-wide. So in other words, I'm not convinced we need three by no means. I'm not convinced that they need to be just in Western Loudoun County or that person needs to be just in Western Loudoun County.

[03:27:32] But I do think that one right now could be helpful and if it could be used, especially if it could be used countywide. Because we are hearing people say, please, you know, when I have an issue, please enforce what we have right now and please come out sooner.

[03:27:49] I hear this all the time. And so I think there's something here, but I think we've overshot what we need to be doing this early. So if I could just add, just have a moment, supervisors, I know you're on a clock, but if I could just have maybe an idea of would any of you be interested in saying, let's do one of these right now versus all three.

[03:28:13] Madam Chair. Let me just finish my, let's do one of these right now instead of all three, and perhaps let that one be used, however the staff thinks it needs to be used, and if there's issues that happen in the East, it happens in the East, and you won't get to all of them, but get to some of them something like that so so colleagues point of order madam chair i mean wouldn't that just be a friendly to the motion that's about to be made well not i mean i don't think it's necessarily a proper to do a straw poll if there's not a motion i'm not actually asking for a straw well we can we can do it we can do it for me that's a whole lot more but if the maker

[03:28:50] of a motion wouldn't accept the friendly i mean i'm not sure we want to go through all that anyway So I think the fundamental question is proactive versus reactive or complaint-based zoning. So under your construct of doing one position, will we remain in a complaint-based zoning posture and just simply have one more zoning official available to respond, or would we switch to proactive?

[03:29:14] It would be a complaint-based, but they could respond faster. But they could respond faster. So we're essentially just giving one more resource to the existing team to respond faster to a complaint. Can we mind if we ask them if that's helpful?

[03:29:30] Is that helpful? So I have a few practical concerns with... Let me answer the question, Mr. Bricksman. So having one inspector without a supervisor at the same time would be somewhat problematic. There's also potentially safety issues of only having one on call that doesn't have anyone to go with them unless they're calling law enforcement.

[03:29:51] At least if we're talking to someone that's working in the evenings and off hours. Okay that then that's helpful then I won't make that friendly amendment at all. Thank you. Mr. uh well let's try it this way. So there is a motion on the dais um I think it'll be a further move motion. So I will go to Mr. Kirsten for the motion. Thank you Madam Chair. I move the Board of Supervisors remove the proactive zoning enforcement resource requests in the Department of Planning and Zoning Fiscal Impact 422,829. I further move the Board of Supervisors add the

[03:30:25] senior plan of resource request in the Department of Planning and Zoning fiscal impact \$172,013. Motion is made by Supervisor Kirshner and seconded by Supervisor Briggsman. Discussion on the motion. Supervisor Kirshner. Thank you Madam Chair. I don't want to try to prolong this too long. I think we kind of went around the whole process but again I just want to reiterate we don't and it's clear the staff is struggling with this too. We don't have this clearly defined and I would probably in favor of madam chair's idea of having an additional person to be proactive enforcement because i think that's

[03:31:01] honestly what we need um i would probably be in favor of that sort of motion if the if we could maybe the staff could come up maybe even a wrap-up and say this is how we could use this person i would certainly support that i think that goes along the lines and meets both of the western loudon interest in the middle um and and i would i would be willing to do it just for western loudon too because I think really if you look at any of the complaints it's largely largely almost entirely noise based and the problem is the sheriff's department can get out there they have a different standard they have to enforce the criminal

code whereas zoning department is just not available most of the time so if they could be available some of the time to do that what I call reactive

[03:31:41] enforcement we would solve 99.9 percent of the non-residential issues that arise on in western Loudoun County and not spend all the money that we're suggesting we spend on these three enforcement issues so with that said I'm and also we're just not there yet we're not there and we talked about this December just to Supervisor Sane's point it's December 27 when this is scheduled to be done that's a whole year and a half so just make sure we understand the timeline on this before we actually fully define this so I think it would it might be more germane to

[03:32:16] address this next budget session when we get there? We're not going to have even done this. We'll have more time. What the definition of what these are going to do, along Supervisor Letourneau's point, what are the actions that these proactive zoning enforcement folks are going to take? I guess the last question I have within my time, the other six resources that seems to be we are supporting, would they not be able to do reactive enforcement as well? I mean, there are zoning enforcement support positions if indeed within the department we wanted to see them, you wanted to see them do some of that or react to some of this. Maybe

[03:32:54] not in the evenings, but let me ask that, is that even possible? So everything that that team does is reactive or complaint-based. So yes, the issue with the three is that they were, they would be intended to work different hours or in some way be different than the team that's here. So the six, It's the resource request of \$810,000, the one that we're not.

[03:33:17] For the property maintenance code? Yeah, it's the zoning enforcement support positions. Yes. They could be reactive. So that team or those six positions are really because we are anticipating that the board is going to adopt additional regulations that we talked about last year.

[03:33:34] And so we would need them to train them up, have the additional staff to take on the additional cases. I do think that there will be some overlap where they can take other cases off of people. some of those could be what you're referring to oh that's great that's exactly what i'm looking for thanks okay thank you mr crony uh thank you chair randall so i won't be supporting this motion um tluck we we've been meeting for a year more than a year now um with stakeholders and uh we had our direction meetings and this was one of the motions that uh we supported as a tluck um

[03:34:11] committee, so I think we do need proactive enforcement. Lex complaints are not indicative of what's going on in Western Loudoun, isn't just about noise. There are traffic concerns, there are lighting concerns, there are parking concerns, there's compliance with existing zoning regulations and state code concerns. You know, I do think we needed some proactive enforcement and I'm sorry to see that this will be going.

[03:34:44] I think this allows us to do it sooner rather than later. And I do wanna remind my colleagues that there were more than 2,500 comments in the ZOR, in the Zoning Ordinance Rewrite from residents, and those were unaddressed issues that we're trying to address in the rural ZOAM and CPAM.

[03:35:08] And, you know, those are issues with compliance and issues with some of what's going on as far as balancing the uses in Western Loudoun, the residential uses and the rural economy uses.

[03:35:24] So I won't be supporting this. I think it's kind of putting, before we even get to the full board to talk about it, I think this is removing something that we voted on as a TLA committee, so I can't support

this. thank you thank you um miss brixman thank you madam chair i appreciate the conversation and i do understand that there are some buildings that are non-permitted or maybe bit used for unpermitted uses they may have some fire hazards some safety hazards and there are noise issues but i think those are two different things in my mind

[03:36:04] um i really am in favor of the inventory i'm in favor of making sure folks that are running businesses are in compliance um for the health and safety of our community but i have a lot of trouble understanding or accepting that one part of the county should get their own special zoning enforcement especially if it's just about mostly about noise right and and if we are to go

[03:36:35] down the road of having reactive our zoning staff being reactive to noise complaints across the county. That is just a complete slippery slope. I mean, I can't even imagine how many people we would need for that. So I do think it's a little bit early. I would like to discuss how this would be accomplished programming wise, because I am in favor of making sure we've got safe buildings and safe wedding venues and safe breweries and all those things but what i'm not in favor of is having

[03:37:12] our staff on friday and saturday night responding to noise complaints in any part of the county really i just don't think that's a path that we want to go down in it at night you know what i'm saying like i just think that we're and it to me it's almost wouldn't be fair for one part of the county to have their own special zoning police and another part of the county not to have it so i'm going to support caleb's motion i look forward to the discussion like i said i i want the health and safety issues addressed i would like them addressed yesterday but for me i need

[03:37:52] to have a better understanding of how the programming is going to work with with these staffers so i'm going to support the motion thank you mr turner thank you madam chair well a couple of things um i believe this motion is going to pass so this is largely a ceremonial vote and my no vote on this is primarily to tell the stakeholders that have been involved in this process for two years yes we heard what you said we're trying to do something about it the message we're sending now when this passes is we know you've been talking for two years we're going to ignore you for another year and a half and we'll get back to you thanks

[03:38:29] very much for your work and i'm just not going to do that so i i know my no vote is probably going going to be irrelevant. Regarding the noise complaints, the impression I've gotten over the last two years, I could be wrong, I don't think I am, because the impression I've got is there are zoning violations that have been violations for decades existing in Western Loudoun right now. Uses that have no business being uses. Fire codes being willfully ignored to the hazard of a lot of our citizens. This is rampant. And if you're in the West, yes, There is no question in a complaint-based system, the vast majority of complaints are going to be noise complaints.

[03:39:09] But that's not what we heard from the stakeholders. From the stakeholders, we heard there are uses going on in these properties that are flat violations of zoning, and they have been for years, and no one's doing anything about them. I believe that if we pass this, that these three individuals would really be able to facilitate the inventory and would figure out imaginative ways of how to respond to the inventory in anticipation of the debate we're going to have on this board.

[03:39:40] So my feeling is that the zoning enforcement in the West has to do with uses and standards and performance standards, not primarily noise. So I'll be voting no on this, recognizing that it's probably going to pass.

[03:39:56] And, yeah, I applaud staff for trying to take a shot at addressing what was a pretty common stakeholder complaint. Thank you. So we were doing so well until my colleague from the Ogonkian District once again had to do some pitting the West against the East.

[03:40:13] It has got to stop. It has got to stop. The truth is the West is different. They do have different zoning ordinances because it's different noise standards out there. And so there may be times where there is something that happens different in the West for that very reason.

[03:40:32] And quite frankly, Mr. Turner is right. We asked the West to wait for, what, four years until we got to them. And they've done that very patiently. And so the idea that, you know, at all times in a county this large and this diverse with four separate policy areas, the different policy areas are going to have different things and different needs and different responses.

[03:40:57] That's the nature of our county. And quite frankly, that's the beauty of our county. So I have no issue at all if the west had something that the east didn't have or the east had something or the transition policy area. That's what our county is. and the pitting the county against each other is so tiresome it has got to stop we are one county I might be working with you all between now and the wrap-up wrap-up it's going to be a really busy day to find out if there is something we can do is that I talked about before I'm not sure if there is or not you did say one thing that kind of caught my surprise I understand completely when

[03:41:36] you say you don't know who a supervisor would be got that part but then I also heard you say you wouldn't want anyone to go out by themselves. So are these positions expected to be going out like the bloody system with more than one person at a time? I mean, wouldn't it be that one person would go out by themselves anyway?

[03:41:53] So obviously we don't have all of that worked out yet, but I think both Mr. Fairfax and Ms. Johnson have raised concerns about, depending on the nature of the complaint, whether or not somebody should go out alone in all instances, Where would we draw the line on when they may not feel safe if something's occurring at 9, 10 o'clock at night?

[03:42:14] Do we want to have somebody from the county walking up and knocking on a door to try to address it? Okay. So I'm actually going to abstain on this vote because I am not real comfortable where we're at. And I am going to work with you all and talk to especially my colleagues who are on TLUC to see if there's anything we can do to, I don't know how you said it, Mr. Kirsten, but kind of adjust the motion to see if there's anything we can do.

[03:42:43] Because we are hearing from Western Loudoun County. We are hearing from Eastern Loudoun County. We are hearing from all parts of the county that zoning enforcement is not happening in a timely manner. And so if it can be both complaint-based and then have a faster response to the complaint, that is what I'm trying to get to.

[03:43:05] I don't love the term proactive zoning 'cause I think it's not really getting to what we're doing, but if it can be complaint-based, but get there faster. So I'll have that talk of you. Maybe there's nothing, but let's try to put our heads together between now and the 12th and see if there's something we can come up with, okay?

[03:43:21] Mr. Kirsten, would you like a closing? - Thank you, Madam Chair. Just a couple things to address some of my colleagues' statements. I just wanna reiterate, this is definitely the cart before the

horse. We have not defined the program. We have not defined the responsibilities of these individuals. they were looking to put forward for a program that's not going to be completed until December of 2027.

[03:43:39] Okay, with that put aside, let's talk about the, there was, Supervisor Turner mentioned well they could help with the inventory. I specifically asked the staff the question, can you do this inventory without them? And they said they absolutely can. So that's a red herring. That's an argument that doesn't, that falls on deaf ears simply because of the questions that were asked.

[03:43:57] We talked about rampant violations that exist out there. That's just, again, that is a straw man, that is not the case. If there are violations and they call in, staff can go out, it's a complaint-based system. But what we've had is 15 complaints per year, non-residential, 15 complaints.

[03:44:17] If they're so rampant, why aren't we getting more complaints? Because they don't exist. And I appreciate us wanting to take care of the health and welfare, but that is, what we heard from the stakeholders was essentially this. We are okay with a reactive-based process where you have people that will go out when the complaint occurs and take care of it, and take care of it in a timely manner.

[03:44:38] And that's kind of what staff is talking about, but that's not really what these positions, when you read the description, are for. So I think we should take these positions out, if we want to come back at wrap-up, and talk about, okay, we're okay with these positions, I may be very open to that.

[03:44:54] But this is, again, the cart far before the horse. I just think we have to be responsible with this money, and it's not fully defined. Is it what they're going to be doing? There was some kind of guesswork. They could do this. They could do that. Well, we're not even done the program until later. We have to define what they're going to do. These are just kind of positions that are filled that are called proactive enforcement, and it appears that these support positions could do some of what was described up here tonight.

[03:45:18] Thank you. Thank you, sir. All right. Motion was made by Supervisor Kirshner, seconded by Supervisor Briggsman. May I play it? Please say aye. Aye. Opposed? No. Oh, and I will abstain, so that motion will pass. I think that would be 5-3-1.

[03:45:36] 4-4-1. Is it 4-4? Okay, if you're a nay, raise your hand. Ooh, it's T-Luck. No, no, no, no.

[03:45:59] It's fine. I will go on, so we can have a decision right now. I will go on and vote for the motion, But, but, I will be working with staff, I will be working with, especially my colleagues in TLUC, and my colleague who represent, well, TLUC is everybody, and I will probably come back on the 12th or something else, and so it would be a five for a vote, and the vote will pass, but expect me to come back at TLUC, okay?

[03:46:33] Thank you. I think that's it. No, I meant for this, for this department, I meant for Dan, I think that's it. You guys, thank you for all you do. Evidently, as you can see by up here, it's a difficult but very, very important department, so thank you.

[03:46:51] All right, Transformation and Capital Infrastructure, last one for the night. Thank you for waiting so patiently. Hello. We are ready when you are.

[03:47:15] All right, thank you. Welcome to your first budget. Yes, very exciting. But we still think you're excited.

[03:47:28] I'm excited. We still, we believe you. We believe you. No, no. All right. Good evening, Chair Randall and members of the board. Thank you for the opportunity to speak about DTIC's FY27 resource

request. My name is Shireen D'Arazio, the Director of Department of Transportation and Capital Infrastructure. With me tonight are Heather Dietz, Deputy Director of Transportation, and Joe Granada, Assistant Director of Administration and Policy. I don't think you've met him yet.

[03:47:56] we have not all right currently dtci has 96 positions performing planning programming and execution of over 300 projects valued at 4.7 billion dollars projects include planning studies designs programs like iip stp and construction of transportation and capital infrastructure including county facilities we also have budget hr it contract management internal controls foia and other administrative functions to oversee dtci has engaged a vendor with organizational design expertise to facilitate the senior leader team to review and update our program review.

[03:48:32] This effort allows us to better see our organization, how we operate, and update our service levels. At the time of developing our resource request for the proposed budget, we relied on our previous service levels that do not capture the full breadth of the DTCI mission. We are committed to updating our program review by the start of FY27. The department is requesting as its number one priority, two executive assistants, and one special projects program manager.

[03:48:57] These positions will address gaps while still ensuring the department can concurrently and efficiently deliver our diverse program portfolios. The addition of the two executive assistants is needed to support the department's senior leader team, which is made up of six senior leaders, including myself, two deputies, one deputy over transportation and one over facilities, an acting director of admin -- and assistant director of admin and policy, and assistant directors for facilities, transportation planning, and transportation design and construction.

[03:49:29] The department currently has one executive assistant whose primary role is to support the director. The EA's requested tonight will provide the balance of the senior leader team, general executive support, meeting preparation and coordination, board and community communications, administrative workflow management, cross department and division operational support, and support the integration and workload requirements of the county's department's ongoing initiatives.

[03:49:58] The EAs will also coordinate DTCI engagements, assisting board members in HOA or other public meetings as needed. If approved, these positions will ensure that DTCI enhances leadership engagement and focus, improves board and community communications, strengthens workflow and cross department support, and allows senior leaders to operate at a strategic level.

[03:50:22] The Special Projects Program Manager will report to the Assistant Director of Administration and Policy and support the development of best practice policies, tracking and automated workflows. This Program Manager will also aid in ensuring board items are in plain language, advise on grant funding strategies, and provide program management of DTCI Boards of Supervisors strategic initiatives and DTCI's strategic plan.

[03:50:45] If approved, this position will drive department-wide workflow improvements enhance efficiencies and alignment with strategic initiatives. These three positions will be a force multiplier for the senior leader team, vastly increasing our capability to move the organization forward.

[03:51:03] The department also requests one senior traffic engineer as part of the alternative scenario for the board's consideration. We consider this as priority two requests this fiscal year because we can maintain existing service levels in this area, whereas our priority one will resolve a gap.

[03:51:19] If approved, this position will ensure that DTCI enhances support for traffic warrant and data collection programs, increase on-time land development reviews, strengthens the depth and accuracy of traffic impact studies and school site plan evaluations.

[03:51:35] The position also provides redundancy for the review and analysis of administrative and legislative application in an effort to avoid future capital fund expenditures needed to correct adverse impacts to the transportation network resulting from development.

[03:51:50] This will help us better serve the development community and residents of Loudoun. Over the past year, DTCI has experienced continued and sustained improvement both in our program portfolio as well as the evolution of our leadership team.

[03:52:08] DTCI's FY27 resource requests represent not only a continuation of this momentum but an essential investment in sustaining and building upon our progress. With your support, DTCI will continue to evolve and improve our ability to maintain high service levels, deliver critical infrastructure efficiently, and continue to improve responsiveness to the board's priorities and the community we serve.

[03:52:30] Thank you for your consideration of our requests and our team is happy to take questions you may have for us. Well thank you. I think your team does an amazing job and it's a very, very, very tough job and I think the next year is going to be interesting. We have a lot to do in the next year, so thank you all very, very much and please thank your entire team on our behalf. Supervisors, if you have questions for the DTCI team, please put your light on. Mr. Letourneau.

[03:52:57] Thank you. Yeah, first of all, I do appreciate it. I've noticed a difference in this department since you've been here. I think we're going in the right direction. That is high praise right there. That is high praise. The type of request you made on administration is the kind of thing that would get a lot of scrutiny from the board in the past because it's a little bit harder to quantify.

[03:53:17] I'm willing to kind of give you the leeway if you think you need it, and it's going to expand your productivity. So I really want to dive into the second one, which is related to traffic studies. So I was myself and Mr. Buffington were the authors years ago of the initiative to have the county play an enhanced role in the traffic study process, for which some members of the development community are still mad at me about to this day and ask me when we're going to give it up because they think it takes too long.

[03:53:43] The reason we wanted to do that was because several times at least there were instances in which the parameters by which a developer was submitting a traffic study did not match reality and staff was able to eventually step in with our prompting to say, no, wait a minute, we're not looking at the right thing, which is kind of what we do now.

[03:54:04] But we currently outsource most of that work to a contractor? We have one staff person and the rest is a contractor, yes. Okay, so the proposal here would allow all of it to come in-house or more of it?

[03:54:19] It would be two people and still some contracted out. It's good to have redundancy because if we have someone on leave, they're a single point of failure. Yeah, and this includes warrant studies. Is it fair to say that we're not necessarily the most proactive in staying on top of when a proffer may allow for a warrant study just because of resources not being there to be able to actually look at all of that?

[03:54:47] Heather is saying yes. Yeah. Well, I just know sometimes my office will say, hey, wasn't there a study? And then we'll have to alert you all. But it's because I think you just don't have. So I think this

position is justified. really do because you said it would be you know you could maintain existing service levels without it but our existing service levels really doing the job and I think you would say probably not right correct yeah okay well I'm I may make a motion even tonight okay I'm sorry miss um step thank you madam chair

[03:55:26] first thank you you also have been extremely responsive when our offices had questions. I really appreciate it. You've been wonderful to work with. Are you finding any, are you finding any of the changes that are being made at the federal level impacting your work in any way? As in, if the EPA begins to loosen up environmental regulations, is

[03:55:59] that making your job easier, harder, or is it having no impact? I don't have a good enough analysis to answer your question. Okay. All right. That's fine. Does most of your environmental regulation come from the state rather than the federal government? It depends on which source of funds we have. If we use federal funding, we have to do NEPA. Yes. If we use local funding, we use local guidelines okay all right thank you very much mr sains thank you madam chair and yes

[03:56:38] i'll echo the same sentiments with my colleagues that definitely seen a turnaround since you've been with us especially as you know we you know you heard my complaints about uh a certain project in in my district and you've uh wrapped your arms around that and moved it along a lot so thank you um now with respect though when i'm reading the descriptions for the special project manager versus the engineer 3 transportation to me it sounds like the engineer 3 transportation is more important than the special projects um so help me understand a little bit more why you chose the

[03:57:12] special projects as your part of your top and the engineer to be secondary the funding request was grouped by the service level it accomplished the most for so i put those three together as a group because it really is going to enable us and and even these administrative folks can help with our response time on legislative proposal I mean legislative actions because right now you've

[03:57:44] got a professional staff that is doing all the tracking and this the EAs and the special project manager will help track and bird dog action to accomplish missions. So I think even the special projects manager who is at the, you know, top tier level in DTCL will be driving action. Okay. All right. And we don't have a breakdown for the three positions because it's all lumped up at 430. What is the special projects manager number individually if we

[03:58:23] have that our numbers folks it's a hundred and seventy nine thousand uh five hundred and two dollars okay so nine thousand and some change more than the engineer one no you give me the number for special project manager or the executive assistant for the special projects manager it's 179 502 okay and then what is the just out of curiosity what's the number for the

[03:58:53] the executive assistants individually 125 354 for each okay I think I know where you're going with this question okay well um I think my colleague from Dulles will make a motion but we'll see where that goes um it's my personal opinion I would rather see the engineer three position than the special projects again just on what you're describing in the description but We'll see where your motion goes.

[03:59:27] Thank you. So I hate to ask this question because it's an uncomfortable question for me to ask. I'm not going to be supporting any alternate positions right now until we find out where we're at because it is a -- we are constraining our budget and I'm trying to make sure we stay inside that and, you know, if we're going to do one thing, we have to take something else out.

[03:59:49] That's just how I'm thinking tonight and all the way through this. So with that being said, and I'm sorry to have to ask you this, but because I know that there's possibly going to be a motion for your alternate position, how would you be able to fare if we just did one executive assistant versus two to try to offset that some?

[04:00:13] I have two deputy directors with two very large programs. To have one would be difficult.

[04:00:31] And they have two very different, if you had one executive assistant, it for now could, that person for now could not be used for both? It would be better than where we are now. Could it be used for both because does the executive assistant position have such a specialized skill set that it could not be, but that that position could not be used for both of your deputies to some degree?

[04:00:58] yes ma'am yes ma'am we could you could okay um well if i am going to support the alternate then then it would have to for me it would have to be offset in some way just because i'm trying to um until we know where we're at in the end of this budget i'm trying to be very responsible and and and and keep the tax rate where we're at and so i i really that's an uncomfortable question for me to ask but that's the only way that i know i could support that So, Ms. Letourne, if you're going to make that motion, just know that's the only way I can support that motion.

[04:01:32] Well, the only reason I would is because we have \$250,000 now in our remainder. Well, we do now. But if you would prefer to wait. We have it now, but, again, I might come back in the 12th and ask something else. I said that. That's why I kept saying that. So, I just don't know yet. So, that's how I would do that now.

[04:01:52] Okay. Well, I'll take a shot at it now. And then if we have to know in advance, it could come back out. Let's put it that way. Which is I would move to add the priority to transportation planner, senior traffic engineer at 178.43.

[04:02:09] Motion to remain seconded with Supervisor Sainz. Would you like to have a discussion on the motion? Yeah, just that we do have 250,000 in the remainder right now. I understand that's pending other discussions that's happening. But I really think that this is an essential position given that we are behind in this function.

[04:02:28] And it is affecting a lot of different things, including safety, because we're not getting to warrant studies as fast as we should be. So if we ultimately have to swap things or do something different at wrap-up, that's fine. But I'm kind of just putting a marker down that I think this is one that should be added in.

[04:02:43] Okay. Anybody else? Ms. Brixman? Thank you, Madam Chair. Thank you for all your hard work. And it has been a pleasure getting to know all of you and working with you. And I appreciate your report and your budget request. I'm going to support the motion. I also hope that we can keep the two executive assistants.

[04:03:02] I understand that you have two very big deputy directors that have very big programs underneath them, and I think that it's justified to have those two positions, so I'm hoping at wrap-up neither of those need to be taken out and that we can keep all the positions and your alternate.

[04:03:17] So thank you. Mr. Turner. Thank you, Madam Chair. Thank you very much for the job you've done. It's been terrific. All of you are doing a great job. We really appreciate it. I'm going to vote no on this,

and it's kind of a principled no.

[04:03:38] We're kind of sending the message that this additional job is important enough to vote now on the dais when all the other ones, including the health department we've had so far, is not. I know that's not what we're saying, but that's what it feels like to me. So, again, I'm probably in the minority, but I'm going to vote no. Thank you.

[04:03:56] So obviously I'm going to vote no on this because I really am very committed to trying to keep the budget in balance and when I was in my very first term I had a supervisor from the Dulles district who was in his second term and what he taught me was that sometimes when departments come earlier in the process they get a little more consideration and by the time we get to the last departments we're like mostly tired, and there's not always as much consideration given, and so because that supervisor

[04:04:35] taught me that many years ago, I have now taken the position where I try not to do this at all until we get to the wrap-up, because I think I thought he was correct in that statement. I also think that, you know, we have agreed as a board to have a more constrained budget this year and even more constrained next year. And so trying to be, have some fidelity to that board decision, I will vote no on this. But if, as a second motion made to take one

[04:05:11] of the executive assistant positions out, then I would turn around and vote yes. And then when we get to wrap up, who knows what's going to be left. I think that amount right now could be there, may not be there, maybe more, maybe less, I have no idea because there's a lot of positions.

[04:05:28] But please do not take my no vote for this as a statement on how absolutely fantastic I think you all are doing and I think you need, these are hard decisions. So I think one is a must have and two might be a like to have right now.

[04:05:47] So I say this with apology, but I'm going to vote no for this right now. So, Mr. LaTurna, would you like to close? Yeah, Mr. Turner has a fair point. I can honestly say that of every single unfunded position, this was my top one because it's related to what I think is a fundamental safety issue for the county.

[04:06:05] So that's why I actually do prioritize it, but I understand others may have different priorities and there's no hard feelings about that at all. And Chair Randall is also right in that the timing, but we're not at the beginning anymore. Also, I can't remember a year where we've never had a single motion until wrap-up.

[04:06:20] We always usually do this. We're not doing it this year because there hasn't been money. That's why, really, if we're being honest. And we're all waiting to see kind of how certain other things play out. But that said, there is some money here. As I warned you, it could have to come out even if it passes tonight. These are straw votes. But I do think it's important.

[04:06:36] And so I think I'd like to try to at least get it in for now. Okay. Thank you. The motion is made by Supervisor Letourneau, seconded by Supervisor Sainz to put the alternate transportation capital infrastructure position in.

[04:06:55] All the people who say aye. Aye. Opposed? No. So I don't know. I think that's 5-4. I think that's 5-4 and I think it was a yes for 5-4. If you're a yes, raise your hand. One, two, three. Yes. Wow. Six, six, three.

[04:07:10] Good job. All right. We'll see if it stays. you all do a phenomenal job you do so thank you so much all right supervisors until Monday which in Monday is going to be everyone Monday is going to be a long meeting everybody just get ready for it I will go on and and cancel the meeting on Saturday, the budget work session on Saturday, which is March 7th, knowing that

[04:07:47] you're going to have a really long meeting on March 9th, yeah, on Monday, so yeah. March 12th is going to be a bear. All right, we are adjourned.



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